

# Whangarei District Council Meeting

## Agenda

**Date:** Thursday, 24 October, 2024

**Time:** 9:00 am

**Location:** Civic Centre, Te Iwitahi, 9 Rust Avenue

**Elected Members:** His Worship the Mayor Vince Cocurullo  
Cr Gavin Benney  
Cr Nicholas Connop  
Cr Ken Couper  
Cr Jayne Golightly  
Cr Phil Halse  
Cr Deborah Harding  
Cr Patrick Holmes  
Cr Scott McKenzie  
Cr Marie Olsen  
Cr Carol Peters  
Cr Simon Reid  
Cr Phoenix Ruka  
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

|                                                                                                           |            |
|-----------------------------------------------------------------------------------------------------------|------------|
| <b>1. Karakia/Prayer</b>                                                                                  |            |
| <b>2. Declarations of Interest / Take Whaipānga</b>                                                       |            |
| <b>3. Apologies / Kore Tae Mai</b>                                                                        |            |
| <b>4. Public Forum / Huihuinga-a-tangata</b>                                                              | <b>5</b>   |
| <b>5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti</b> |            |
| 5.1 Minutes Whangarei District Council Meeting held 26 September 2024                                     | <b>7</b>   |
| <b>6. Decision Reports / Whakatau Rīpoata</b>                                                             |            |
| 6.1 Cobham Oval - Parking restrictions                                                                    | <b>17</b>  |
| 6.2 Local Government Funding Agency - 2024 Annual Meeting Matters                                         | <b>57</b>  |
| 6.3 Road Maintenance Contract Procurement Plan                                                            | <b>93</b>  |
| 6.4 Hapū nominees for Climate Adaptation Standing committee                                               | <b>115</b> |
| <b>7. Public Excluded Business / Rāhui Tangata</b>                                                        |            |
| 7.1 Confidential Minutes Whangarei District Council 26 September 2024                                     |            |
| 7.2 ICT Contracts Update                                                                                  |            |
| 7.3 Update on the Insurance Policy Renewal for 2024-2025                                                  |            |
| 7.4 Land purchase Springs Flat project                                                                    |            |
| 7.5 Potential Opportunities for High-Level Major Sporting Events in Northland in 2025                     |            |

## **8. Closure of Meeting / Te katinga o te Hui**

Recommendations contained in the Council agenda may not be the final decision of Council.

Please refer to Council minutes for final resolution.



## 4 Public Forum

**Meeting:** Whangarei District Council  
**Date of meeting:** 24 October 2024  
**Reporting officer:** Carolyne Brindle (Senior Democracy Advisor)

### 1 Purpose / Te Kaupapa

To afford members of the community an opportunity to speak to Council and to report on matters raised at public forums where appropriate.

### 2 Summary

Standing Orders allow for a period of up to 30 minutes to be set aside for a public forum at the commencement of each monthly council meeting.

The time allowed for each speaker is 5 minutes.

Members of the public who wish to participate should send a written application, setting out the subject matter and the names of the speakers, to the Chief Executive at least 2 clear working days before the day of the meeting.

#### Speakers

| Speaker       | Topic                                |
|---------------|--------------------------------------|
| Colin Edwards | Renewal of ground lease - legal fees |

#### Response

| Speaker                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Topic                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|
| Samantha and Jonathan Jones                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Regarding RMA & WDC E Plan |
| <p><i>Response</i></p> <p>Council acknowledges that the speakers are disappointed and believe that Council should be undertaking enforcement action. Council staff take these matters seriously and has reviewed all information provided, along with undertaking on site investigations.</p> <p>When exercising its discretion to undertake any compliance action Council must ensure that it is done so fairly, reasonably, and justifiably. Not every activity carried out by a person on a site, whether activity that is related to their business or their own personal day to day life, will require a resource consent or compliance action. Whether or not an activity can be undertaken depends on the nature and scale of the activity, the zone that the activity is located in and whether or not any effects are in excess of the type of effect that one might normally experience in the zone in question.</p> <p>Council staff are undertaking a further planning review of the matters raised by the speaker (and in subsequent emails) and will provide a comprehensive response to them once that is completed.</p> |                            |



## Item 5.1

### Whangarei District Council Meeting Minutes

**Date:** Thursday, 26 September, 2024

**Time:** 9:00 a.m.

**Location:** Civic Centre, Te Iwitahi, 9 Rust Avenue

#### In Attendance

His Worship the Mayor Vince Cocurullo

Cr Gavin Benney (Teams)

Cr Nicholas Connop (Teams)

Cr Ken Couper

Cr Jayne Golightly (Teams)

Cr Phil Halse

Cr Deborah Harding

Cr Patrick Holmes

Cr Scott McKenzie

Cr Carol Peters

Cr Simon Reid

Cr Phoenix Ruka

Cr Paul Yovich

#### Not in Attendance

Cr Marie Olsen

#### Scribe

C Brindle (Senior Democracy Adviser)

#### Administrative Matters

- Meeting livestreamed
- Members attending electronically
- Item 5 - Police Report withdrawn
- Supplementary Report – Confidential Minutes Whangarei District Council  
29 August 2024

#### 1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

#### 2. Declarations of Interest / Take Whaipānga

No declarations of interest were made in the open section of the meeting.

#### 3. Apology / Kore Tae Mai

Cr Marie Olsen

**Moved By** His Worship the Mayor

**Seconded By** Cr Simon Reid

That the apology be sustained.

**Carried**

**4. Public Forum / Huihuinga-a-tangata**

Samantha and Jonathan Jones - RMA and WDC E Plan

**5. Police Report**

Item 5 was withdrawn from the agenda.

**6. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti**

**6.1 Minutes Whangarei District Council Meeting held 29 August 2024**

**Moved By** Cr Carol Peters

**Seconded By** Cr Scott McKenzie

That the minutes of the Whangarei District Council meeting held on Thursday 29 August 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

**Carried**

**6.2 Minutes Whangarei District Council Meeting held 28 August 2024**

**Moved By** Cr Carol Peters

**Seconded By** Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Wednesday 28 August 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

**Carried**

**7. Decision Reports / Whakatau Rīpoata**

**7.1 Temporary Road Closure - Blessing and Opening of a Whare**

**Moved By** Cr Deborah Harding

**Seconded By** Cr Carol Peters

That the Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the Blessing and Opening of a Whare event on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.



### **Friday 25<sup>th</sup> October 2024**

**Cameron Street**, from corner of John Street and Cameron Street to James Street.

**James Street**, from Cameron Street to Robert Street.

**Period of Closure:** 4am to 10am.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

**Carried**

*Cr Yovich requested his vote against be recorded.*

*Cr Reid requested his abstention from voting be recorded.*

*Cr Couper left the meeting at 9.25am during Item 7.1.*

### **7.2 Temporary Road Closure Request - Whangarei Christmas Parade 2024**

**Moved By** Cr Carol Peters

**Seconded By** Cr Simon Reid

That the Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Christmas Parade 2024 on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965, subject to event organisers providing proof of public liability insurance to the Chair of the Infrastructure Committee and GM Infrastructure by no later than 30 October 2024.

### **Saturday 30 November 2024**

**Alexander Street**, from University Campus to Rust Ave intersection.

**Period of Closure:** 7:30am to 12 noon.

**Rust Avenue**, from Whangarei Intermediate Pedestrian Crossing to Bank Street Intersection

**Bank Street**, from Dent St roundabout down to Water St/Vine St intersection (including Hunt Street and Bank Street intersections)

**Cameron Street West**, from Bank Street intersection to Cameron Street Mall

**Period of Closure:** 10am to 12 noon

**Rathbone Street**, from Cameron Street West to Laurie Hall Lane (including Butter Factory Lane intersection)

**Robert Street**, from Rathbone/Robert Street intersection to Walton Street (includes Rathbone/Robert Street intersection, James/Robert Street roundabout and John/Robert Street roundabout)

**Period of Closure:** 10am to 1pm

**John Street**, from John Street Service Lane to Cameron Street East (includes John Street Service Lane)

**Period of Closure:** 10am to 2pm

**Cameron Street East**, from Walton Street to Cameron Street Mall

**James Street**, from Cameron Street Mall to Dent Street.

**Period of Closure:** 7:30am to 2pm.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

**Carried**

*Cr Halse requested his vote against be recorded.*

*Cr Reid requested his abstention from voting be recorded.*

### **7.3 Dog Management Policy and Dog Control Bylaw - Adoption**

**Moved By** Cr Carol Peters

**Seconded By** Cr Scott McKenzie

That Council:

1. Amends the Dog Management Policy, as provided in Attachment 1, with effect from 28 October 2024;
2. Determines that the proposed Dog Control Bylaw 2024 (Attachment 2)—
  - a. is the most appropriate form of bylaw; and
  - b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
3. Revokes the Dog Management Bylaw 2013 and makes the Dog Control Bylaw 2024 with effect from 28 October 2024;

4. Delegates to the Chief Executive all its responsibilities, duties and powers under the Dog Control Bylaw 2024, except—
  - a. the power to set fees;
  - b. the power to make a decision for which a Council resolution is required;
  - c. the power to hear and decide on any appeal process.
5. Authorises the Chief Executive to make any minor edits or amendments to the Dog Management Policy and the Dog Control Bylaw 2024 to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting.

**Carried**

*Crs Halse, Reid and Yovich requested their votes against be recorded.*

#### **7.4 Te Rerenga - Taitokerau Northland Economic Wellbeing Pathway**

**Moved By** Cr Deborah Harding

**Seconded By** Cr Carol Peters

That Council:

1. Receives Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway.
2. Endorses Te Rerenga: Taitokerau Economic Wellbeing Pathway as an important vision document for Northland.

**Carried**

*Cr Couper re-joined the meeting at 9.45am during discussion on Item 7.4.*

#### **7.5 Amendments to Council's Standing Orders**

Amendments to Standing Orders require 75% of members to vote in favour.

The motion as taken in parts.

**Moved By** His Worship the Mayor

**Seconded By** Cr Phil Halse

That the Council;

1. Note the report and approve the following legislative amendments to its Standing Orders that were adopted by Council on 15 December 2022:
  - i **13.8 Member's status: quorum** (*page 35*)  
Members who attend meetings by electronic link will be counted as present for the purposes of a quorum. *cl.25A(4) Schedule 7, LGA 2002.*

ii **Definition - delete** the definition '*Present at the meeting to constitute a quorum*'. (page 14)

iii. **11.1 Council meetings** (page 32)

The quorum for a meeting of the council is:

- a. Half of the members ~~physically~~ present, where the number of members (including vacancies) is even;
- b. A majority of the members ~~physically~~ present where the number of members (including vacancies) is odd.

iv. **13.9: Member's status: voting** (page 36)

13.9 Where a meeting has a quorum, determined by the number ~~physically~~ present, the members attending by electronic link can vote on any matters raised at the meeting.

*On the motion being put His Worship called for a division:*

|                              | <b>For</b> | <b>Against</b> | <b>Abstain</b> |
|------------------------------|------------|----------------|----------------|
| His Worship the Mayor        | X          |                |                |
| Cr Gavin Benney              | X          |                |                |
| Cr Nicholas Connop           | X          |                |                |
| Cr Ken Couper                | X          |                |                |
| Cr Jayne Golightly           | X          |                |                |
| Cr Phil Halse                | X          |                |                |
| Cr Deborah Harding           | X          |                |                |
| Cr Patrick Holmes            | X          |                |                |
| Cr Scott McKenzie            | X          |                |                |
| Cr Carol Peters              | X          |                |                |
| Cr Simon Reid                | X          |                |                |
| Cr Phoenix Ruka              | X          |                |                |
| Cr Paul Yovich               | X          |                |                |
| <b>Results</b>               | <b>13</b>  | <b>0</b>       | <b>0</b>       |
| <b>Carried (13 to 0)</b>     |            |                |                |
| <b>75% threshold reached</b> |            |                |                |

2. Approve the following discretionary amendments to its Standing orders:

v. **13.1 Members right to attend meetings** (page 34)

**Public excluded:** Members physically present at the meeting, should remain in the room during public excluded business, unless granted leave from the Chair, or are leaving the room having declared a conflict of interest.

vi. **13.7 Right to attend via audio visual link** (page 35)

Members attending via audio visual link must display on screen.

vii. **13.13 Chairperson may terminate link** (page 37)

(e) Information is classified as confidential may be compromised.

(f)[Where] The Member is not displaying visually on screen.

viii **14.2 Chairperson's role in meetings (Other meetings)** (page 38)

The Chairperson may agree to vacate the Chair to enable the Deputy Chairperson to chair the meeting at pre-agreed times.

Where this occurs, the Chairperson will need to formally vacate the Chair at the start of each meeting that it is pre-agreed the Deputy Chair will chair, and this must be recorded in the minutes of that meeting. The Chairperson is then able to be present, and participate in the meeting, including voting, while not chairing the meeting.

Amendment

**Moved By** Cr Paul Yovich

**Seconded By** Cr Phoenix Ruka

Amend recommendation vi. - 13.7 Right to attend via audio or audio visual link as follows:

vi. **13.7 Right to attend via audio visual link** (page 35)

Members attending via audio visual link must display on screen, *unless technical difficulties occur.*

**The amendment was Carried**

*On the motion being put His Worship called for a division:*

|                       | <b>For</b> | <b>Against</b> | <b>Abstain</b> |
|-----------------------|------------|----------------|----------------|
| His Worship the Mayor | X          |                |                |
| Cr Gavin Benney       | X          |                |                |
| Cr Nicholas Connop    | X          |                |                |
| Cr Ken Couper         | X          |                |                |
| Cr Jayne Golightly    | X          |                |                |
| Cr Phil Halse         | X          |                |                |
| Cr Deborah Harding    | X          |                |                |
| Cr Patrick Holmes     | X          |                |                |
| Cr Scott McKenzie     | X          |                |                |
| Cr Carol Peters       | X          |                |                |

|                 |           |          |          |
|-----------------|-----------|----------|----------|
| Cr Simon Reid   | X         |          |          |
| Cr Phoenix Ruka | X         |          |          |
| Cr Paul Yovich  | X         |          |          |
| <b>Results</b>  | <b>13</b> | <b>0</b> | <b>0</b> |

**The Motion was Carried (13 to 0)  
and subsequently Carried  
as the substantive Motion  
75% threshold reached**

3. Note Standing Order 20.11, use of digital devices at meetings:

**20.11 Electronic devices at meetings** (page 47)

Members use of digital devices is limited to the sole purpose of accessing notes and agendas.

*On the motion being put His Worship called for a division:*

|                       | <b>For</b> | <b>Against</b> | <b>Abstain</b> |
|-----------------------|------------|----------------|----------------|
| His Worship the Mayor | X          |                |                |
| Cr Gavin Benney       | X          |                |                |
| Cr Nicholas Connop    | X          |                |                |
| Cr Ken Couper         |            | X              |                |
| Cr Jayne Golightly    | X          |                |                |
| Cr Phil Halse         | X          |                |                |
| Cr Deborah Harding    |            | X              |                |
| Cr Patrick Holmes     |            | X              |                |
| Cr Scott McKenzie     |            | X              |                |
| Cr Carol Peters       |            | X              |                |
| Cr Simon Reid         | X          |                |                |
| Cr Phoenix Ruka       | X          |                |                |
| Cr Paul Yovich        | X          |                |                |
| <b>Results</b>        | <b>8</b>   | <b>5</b>       | <b>0</b>       |

**The motion was Lost  
75% threshold not achieved**

**8. Information Reports / Ngā Pūrongo Kōrero**

**8.1 2024-34 Long Term Plan - Deloitte Report to Council**

**Moved By** His Worship the Mayor

**Seconded By** Cr Simon Reid

That Council note the Deloitte Report to Council for the 2024-34 Long Term Plan.

**Carried**

## 8.2 Better Off Funding Portfolio Progress Report - September 2024

**Moved By** Cr Simon Reid

**Seconded By** Cr Patrick Holmes

That the Council notes the September 2024 Progress Report on delivery of the Better Off Funding Portfolio.

**Carried**

## 8.3 Updated higher Government Parking and Towing Penalties

**Moved By** Cr Simon Reid

**Seconded By** His Worship the Mayor

That the Council receives and notes this report.

**Carried**

## 9. Public Excluded Business / Rāhui Tangata

**Moved By** His Worship the Mayor

**Seconded By** Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

| General subject of each matter to be considered |                                                                               | Reason for passing this resolution in relation to each matter | Ground(s) under Section 48(1) for passing this resolution |
|-------------------------------------------------|-------------------------------------------------------------------------------|---------------------------------------------------------------|-----------------------------------------------------------|
| 1.1                                             | Confidential Minutes<br>Emergency Whangarei District Council 4 September 2024 |                                                               |                                                           |
| 1.2                                             | Property Matter – Rent Concession                                             |                                                               |                                                           |
| 1.3                                             | Contract Negotiations – Animal Shelter Operations                             |                                                               |                                                           |
| 1.4                                             | Transition Advisory Board Appointments                                        |                                                               |                                                           |
| 1.5                                             | Confidential Whangarei District Council Minutes 29 August 2024                |                                                               |                                                           |

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests

| protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows: |                                                                                                                                 |                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|-----------------|
| Item                                                                                                                                                                                    | Grounds                                                                                                                         | Section         |
| 1.1                                                                                                                                                                                     | For the reasons as stated in the open minutes                                                                                   |                 |
| 1.2                                                                                                                                                                                     | To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) | Section 7(2)(i) |
| 1.3                                                                                                                                                                                     | To enable Council to carry on without prejudice or disadvantage commercial activities                                           | Section 7(2)(h) |
| 1.4                                                                                                                                                                                     | To protect the privacy of natural persons including that of a deceased person                                                   | Section 7(2)(a) |
| 1.5                                                                                                                                                                                     | For the reasons as stated in the open minutes                                                                                   |                 |

**Carried**

*A break was taken from 10.49am to 11.04am.*

#### **10. Closure of Meeting / Te katinga o te Hui**

His Worship the Mayor closed the meeting with a karakia/prayer at 12.04pm.

Confirmed this 24<sup>th</sup> day of October 2024

His Worship the Mayor Vince Cocurullo (Chairperson)



## 6.1 Cobham Oval - Parking restrictions

**Meeting:** Whangarei District Council  
**Date of meeting:** 26 September 2024  
**Reporting officer:** Will McNab (Strategic Planner – Bylaws)  
 Louis Rattray (Manager – Parks and Recreation)

### 1 Purpose / Te Kaupapa

To introduce parking restrictions at Cobham Oval under the Parking and Traffic Bylaw 2017, noting that concerns around enforcement remain unresolved.

### 2 Recommendations / Whakataunga

That Council:

1. Notes the feedback from Elected Members at a Briefing on 11 September to introduce permanent parking restrictions at Cobham Oval by Council resolution;
2. Reserves, under section 591 of the Local Government Act 1974 and under clause 15.1.a of the Parking and Traffic Bylaw 2017, the area of the carpark southeast of Cobham Oval shaded blue in Attachment 1 as a parking place;
3. Prescribes, under clause 15.1.c of the Parking and Traffic Bylaw 2017, a maximum period of 4 hours for the parking of any vehicle at the Cobham Oval parking place, except for vehicles displaying Council-approved permits;
4. Specifies, under clause 16.1 of the Parking and Traffic Bylaw 2017, the four parking spaces highlighted yellow in Attachment 2 as mobility parking spaces;
5. Determines that the parking restrictions under resolutions (3) and (4) above will take effect once traffic control devices that evidence those restrictions are in place;
6. Directs staff to install the traffic control devices by 30 November 2024;
7. Notes that staff will have to apply regulatory discretion around enforcement of the restrictions in some instances;
8. Directs staff to report back on traffic management requirements and potential safety improvements within the road corridor that could reduce the use of traffic cones during an event, while addressing necessary health and safety requirements;
9. Directs staff to engage with Cobham Oval Trust, Northland Cricket Association and NECT on implementation and report back to Council with any changes that require a resolution.

### 3 Background / Horopaki

Council discussed options to address the issue of permanent vehicle dwellers (PVDs), people experiencing homelessness and freedom campers occupying Council-controlled carparks at Cobham Oval at a Briefing on 11 September 2024.<sup>1</sup>

At that Briefing, Elected Members provided clear direction that Council should restrict parking at Cobham Oval through clause 15.1 of the Parking and Traffic Bylaw 2017 (the Bylaw). Providing sufficient carparking for event visitors is a key mechanism by which Council can support organisers of events at Semenoff Stadium and Cobham Oval. Currently carpark capacity is limited by long-staying permanent vehicle dwellers.

Elected members provided further feedback for staff to—

1. investigate options to introduce parking fees (per individual parking space);
2. give extra consideration to homeless people who have no suitable alternative options;
3. report back with suitable alternative locations for PVDs to park.

For context, Cobham Oval and Semenoff Stadium are expected to host in 2025—

- six to eight domestic cricket matches at Cobham Oval, in addition to corporate and other events at Plus Pavilion and Johnston Crawford Indoor Centre;
- 15 major events at Semenoff Stadium.

### 4 Discussion / Whakawhiti kōrero

#### 4.1 The staff recommendation would apply a four-hour limit to 142 public parking spaces at Cobham Oval through the Bylaw

Under the recommendation, 142 parking spaces at Cobham Oval, including four mobility parking spaces, would remain open to the general public, subject to a four-hour time limit enforceable by Council's parking wardens.

At the time of writing, discussions are underway with the main leaseholders to add the remaining 49 parking spaces to their current allocation of 26 parking spaces. Staff will continue to work with the leaseholders and report back to Council with any changes that require a resolution.

The recommendation strikes a compromise between competing demands:

- A more efficient use of the carpark with greater turnover of parking spaces
- The need for certain enforceability to effectively manage the parking place
- Adequate parking for users of the on-site facilities
- Continued public access to the carpark.

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<sup>1</sup> Agenda report is available here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=4208>.

#### 4.2 Parking restrictions are near-universal at international cricket venues in New Zealand

The following table shows that parking restrictions, including paid on- and off-street parking, are commonplace at international cricket venues around New Zealand.

**Table 1: Parking availability and pricing at international cricket venues around New Zealand**

| Venue                     | Event parking availability                                                                       |
|---------------------------|--------------------------------------------------------------------------------------------------|
| Eden Park, Auckland       | No on-site parking; between \$2 and \$14 per hour at nearby private carparks                     |
| Seddon Park, Hamilton     | No on-site parking; demand-responsive pricing between \$1 and \$6 per hour for on-street parking |
| Bay Oval, Mt Maunganui    | No on-site parking for events; mix of P120 and unrestricted on- and off-street parking           |
| McLean Park, Napier       | On-site parking priced by venue hirers; unrestricted on-street parking                           |
| Basin Reserve, Wellington | No on-site parking; casual parking from \$4 per hour at nearby private carpark                   |
| Hagley Oval, Christchurch | No on-site parking; metered P180 on-street parking                                               |
| Queenstown Events Centre  | Free on-site parking                                                                             |
| University Oval, Dunedin  | No on-site parking; P120 on adjacent Logan Park Drive                                            |

#### 4.3 The recommended approach is consistent with the consent conditions of both Cobham Oval and Okara Park (Semenoff Stadium)

Cobham Oval and Semenoff Stadium are required under their resource consents to provide 217 and 184 carparks, respectively (Attachments 4 and 5). Both carparks meet these conditions. In addition, there is no longer any consent requirement for Cobham Oval to meet demand for carparking resulting from events at Semenoff Stadium.

Letting further parking spaces to the onsite leaseholders and applying a four-hour time limit to the remaining 142 public parking spaces at Cobham Oval does not give rise to any implications under the consent conditions for either Cobham Oval or Semenoff Stadium.

#### 4.4 The Cobham Oval carpark could still cater for longer-lasting major events at Semenoff Stadium and at the Oval

If Council or event organisers feel in future that a four-hour limit is too restrictive for rare events that last longer than four hours *and* attract large audiences (for example an international cricket game, a triple-header at Semenoff Stadium or some private events at Plus Pavilion), Council could either 1) declare an exemption for the event by resolution; or 2) issue permits for the event organiser to provide to attendees.

Longer term, Council may wish to amend the Bylaw to delegate to the Chief Executive the power to declare temporary parking exemptions or restrictions for events. There is currently no capacity in Council's bylaws work programme to do this within the next 18 months.

#### 4.5 Council does not yet have a suitably located and equipped alternative site to cater for PVDs

Staff have not had the capacity since the 11 September Briefing to rigorously explore alternative sites for PVDs.

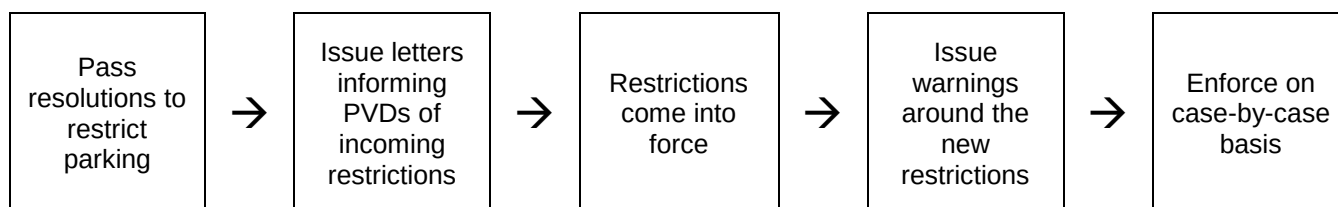
The New Zealand Motor Caravan Association (NZMCA) has no sites in the Whangārei urban area for its members. It does have a partnership with the Department of Conservation (DOC) where members are eligible for discounted rates at DOC sites.

There have been efforts to engage with Central Government to develop options for a supported living-type environment. Direction from previous briefings has been that Council should not be leading in this area, due to a lack of resources or mandate to become responsible for such a facility.

In the absence of such facilities provided for in Council's Long Term Plan, staff will continue to work with Central Government agencies to promote a longer-term solution.

#### **4.6 Enforcement entails both risk and costs, requiring both a staged approach and some regulatory discretion**

Several factors complicate the enforcement of parking restrictions at Cobham Oval, requiring both time and an element of discretion. The steps leading to enforcement can be summarised as follows:



##### **PVDs at Cobham Oval will require adequate notice before any enforcement action takes place**

Parking restrictions at Cobham Oval will require time to implement. As Council has tacitly allowed Cobham Oval to be used to park larger vehicles over several years, these users of the carpark will need a reasonable opportunity to move their vehicles. This can be assisted through the introduction of signage and use of warning letters.

##### **Care will be needed to ensure that Council complies with its legal obligations**

A number of the vehicles are not roadworthy and some may not be mobile, so it may not be possible for the owners to move the vehicles on their own. If some cannot or will not move their vehicles following new parking restrictions, enforcement will require—

- official warning notice of potential seizure of property;
- the use of towing equipment that can transport large vehicles;
- storage of seized property.

Each of these will need to be assessed on a case-by-case basis to ensure Council complies with its obligations under other legislation, including the Bill of Rights Act 1990.

##### **Some cases will require regulatory discretion**

In the absence of dedicated sites, funding and/or government agency support, and given the resources required to tow and store any seized property, in some cases the enforcement of any parking restrictions at Cobham Oval will require discretion.

This would be assessed on a case-by-case basis to ensure that Council—

- i. meets its legal obligations;
- ii. does not incur undue cost;
- iii. gives due consideration to the needs of individuals without suitable alternatives.

#### **4.7 Staff will continue to work with NECT, Cobham Oval Trust and Northland Cricket Association to meet event traffic management requirements with regard to health and safety improvements**

Staff will report back to Council on traffic management requirements and potential safety improvements within the road corridor that could reduce the use of traffic cones during an event, while addressing necessary health and safety requirements.

#### **4.8 Financial/budget considerations**

The recommended option would incur a cost of \$4,000-6,000 to install an appropriate number of P240 signs. Staff anticipate that effective signage, including any signs and markings provided by leaseholders, will mitigate the need for physical barriers.

Initial communication and education around the incoming restrictions can be performed within Armourguard's existing resources.

While infringement fees for towage will increase on 1 October 2024 (Attachment 3), staff do not expect them to fully cover the cost of any such last-resort enforcement.

Any lease variation can be managed in-house.

Council's Long term Plan has not allocated any funding towards identifying and taking the necessary measures to set up an appropriate alternative location for PVDs.

#### **4.9 Policy and planning implications**

The absence of priced parking in the recommendation is inconsistent with the "accurate pricing" and "efficient utilisation" principles of Council's existing Parking Management Strategy.

#### **4.10 Options**

Staff have explored two alternative categories of parking restrictions to give effect to the direction received from Council at the Briefing on 11 September 2024:

##### **1. Pay-and-display parking**

Council could introduce pay-and-display parking at Cobham Oval by amending resolution (3) as follows:

3. *Prescribes, under clause 15.1.d of the Parking and Traffic Bylaw 2017, a fee to park a vehicle in each paid parking space within the area of the Cobham Oval parking place shaded in Attachment 1 of \$[XX] per hour, between the hours of 8:00am and 6:00pm daily, except for vehicles displaying Council-approved permits;*

While such a mechanism could promote the efficient use of the site and better align with Council's existing Parking Management Strategy, procuring and installing the necessary equipment would likely cost \$50,000-80,000. No funding has been set aside in the Long Term Plan for this purpose.

Moreover, given the availability of free and low-cost parking nearby and based on prices at other Council-controlled parking places, staff estimate that Council would be unlikely to fully recoup this cost through parking fees.

Alternatives to pay-and-display, such as demand-responsive pricing (where parking spaces are priced dynamically to achieve a targeted occupancy rate) or pay-by-plate parking have not been considered due to timeframes and available resourcing.

## 2. Restriction by weight class

To restrict vehicles over a gross vehicle mass threshold such as 3,500kg, which would effectively prohibit most motorhomes with more than four berths, resolution (3) could be amended as follows:

3. *Prohibits, under clause 20.1 of the Parking and Traffic Bylaw 2017, the parking of any vehicle with a gross vehicle mass exceeding 3,500kg at the Cobham Oval parking place shaded in Attachment 1, except for vehicles displaying Council-approved permits;*

While this would cover most freedom camping vehicles and house buses, staff harbour concerns at the potential unintended consequences of prohibiting a certain class of vehicles. It could also create less certainty for enforcement purposes.

Staff do not consider it feasible to restrict vehicles based on how those vehicles are used at a point in time.

### Other regulatory options

For completeness, Council discussed the following options matrix at the Briefing on 11 September 2024 and provided clear direction to proceed with Option 3.

**Table 2: Summary of short- to medium-term regulatory options**

|                                             | 1. Status quo | 2. Event-based restrictions by Council resolution                    | 3. Permanent parking restrictions by Council resolution                                                   | 4. Amend Parking and Traffic Bylaw to delegate authority to CE to restrict parking for events          | 5. Amend Camping in Public Places Bylaw to include Cobham Oval carpark in schedules                              |
|---------------------------------------------|---------------|----------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|
| <b>Legal mechanism</b>                      | N/A           | Council resolution under clause 15.1 of Parking & Traffic Bylaw      | Council resolution under clause 15.1 of Parking & Traffic Bylaw (e.g. no overnight parking or time limit) | Delegation under Parking & Traffic Bylaw authorised by s22AB(3) Land Transport Act (= bylaw amendment) | Amend schedules in Camping in Public Places Bylaw to prohibit freedom camping at Cobham Oval (= bylaw amendment) |
| <b>Cost to introduce (incl. staff time)</b> | N/A           | Needs separate Council resolution for each event                     | Only one Council resolution → lowest cost                                                                 | S83 (SCP) consultation; minimum 5-month process                                                        | S83 (SCP) consultation; minimum 5-month process                                                                  |
| <b>Cost to implement (incl. staff time)</b> | N/A           | May require repeat enforcement; Will require initial staged approach | Potentially lower enforcement cost (once only) Will require staged approach                               | May require repeat enforcement; Will require initial staged approach                                   | N/A                                                                                                              |
| <b>Does it provide regulatory solution?</b> | No            | Yes, proportionate to problem                                        | Yes, but less proportionate to problem                                                                    | Yes, proportionate to problem                                                                          | Ineffective: only applies to freedom campers, not "homeless"                                                     |

|              |                                                                        |                                                                                                                               |                                                                                        |                                                                                                                               |                             |
|--------------|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| <b>Risks</b> | Continued disruption to other users of Cobham Oval and business onsite | Legal risk to enforcement; Where do PVDs go? PVDs may continue to use site between games, requiring enforcement at each event | Legal risk to enforcement; Where do PVDs go? Higher risk of shifting problem elsewhere | Legal risk to enforcement; Where do PVDs go? PVDs may continue to use site between games, requiring enforcement at each event | Misdiagnosis of the problem |
|--------------|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|-----------------------------|

#### 4.11 Risks

Enforcement carries the risks outlined in section 4.6 above. In addition, evicting PVDs from Cobham Oval could result in them shifting to other areas which could pose additional or similar challenges. In terms of the impact on Council resources, it is likely preferable to have PVDs coinhabiting one site rather than spread across several sites.

## 5 Significance and engagement / Te Hira me te Arawhiti

The decisions of this report do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed via agenda publication on Council's website.

Following the introduction of time limits, Council will publish communications to promote paid powered camping sites for motorhomes and caravans in the Whangārei District.

## 6 Attachments / Ngā Tāpiritanga

Attachment 1 - Plan of Cobham Oval parking place

Attachment 2 - Cobham Oval mobility parking spaces

Attachment 3 - New nationwide parking infringement fees

Attachment 4 - LU0639432.04 - s127 decision - Toll Stadium

Attachment 5 - LU0639432.06 - s127 decision - Cobham Oval





## Attachment 1 - Plan of Cobham Oval parking place



Key: Area shaded blue = P240 parking place



## Attachment 2 - Cobham Oval mobility parking spaces



Key: Parking spaces highlighted yellow = mobility parking spaces



## Attachment 3 - New nationwide parking infringement fees

The following nationwide infringement fees came into force on 1 October 2024.

| <b>P106: Parked over the time limit by...</b> | <b>Fine</b> |
|-----------------------------------------------|-------------|
| Not more than 30 minutes                      | \$20        |
| More than 30 minutes but not more than 1 hour | \$25        |
| More than 1 hour but not more than 2 hours    | \$36        |
| More than 2 hours but not more than 4 hours   | \$51        |
| More than 4 hours but not more than 6 hours   | \$71        |
| More than 6 hours                             | \$97        |

| <b>Mobility parking</b>                       | <b>Fine</b> |
|-----------------------------------------------|-------------|
| Park in an area reserved for disabled persons | \$750       |

| <b>Towage</b>                                                                                         | <b>Fine</b> |
|-------------------------------------------------------------------------------------------------------|-------------|
| 3,500kg or less, between the hours of 7am and 6pm, Monday to Friday (not including public holidays)   | \$90.20     |
| 3,500kg or less, any other time (e.g. Saturday, Sunday or a public holiday)                           | \$120.30    |
| More than 3,500kg, between the hours of 7am and 6pm, Monday to Friday (not including public holidays) | \$223.40    |
| More than 3,500kg, any other time (e.g. Saturday, Sunday or a public holiday)                         | \$343.70    |



## **Decision: Change and Cancellation of Conditions of Consent Application - Section 127 of the Resource Management Act 1991**

IN THE MATTER of the Resource Management Act 1991

and

IN THE MATTER of an application under Section 127 of the Resource Management Act 1991 by Whangarei District Council

### **Application**

Application to cancel conditions 2 and 2A and change condition 8(f) of the resource consent LU0639432 (Council Reference RC 39432) dated 13 September 2006 at Toll Stadium, Port Road, Whangarei being to remove the provision for retail activities on the site and reduce the number of car parks required from 300 to 184. The application requires no built changes to the site as it has already been constructed in accordance with the proposed changes following a variation to the original design via LU0639432 issued in 20097. At this stage, the provision for retail activities was left within the conditions erroneously, therefore the purpose of this application is to ensure that the consent conditions are consistent with the changes that were considered as a part of LU0639432.02.

The application is required to be assessed as a Discretionary Activity.

### **Decision**

The application was considered and determined under authority delegated to an Independent Commissioner, pursuant to Section 34A of the Resource Management Act 1991. The decision is as follows;

#### **Determination 1 – Section 127**

That pursuant to Section 127 of the Resource Management Act 1991, that conditions 2, 2(A) and 8(f) of resource consent LU0639432 have been changed in accordance with the application prepared by Reyburn and Bryant dated 2 November 2017.

A full set of amended conditions are provided below, with deletions marked in ~~strikethrough~~ and additions marked as **bold and underline**.

### **Amended Conditions of Consent**

#### **General**

1. The development of the Northland Events Centre shall be carried out in accordance with the application dated December 2005 and including the following subsequent amendments:
  - Report by Marshall Day Acoustics dated 19 May 2006
  - Report by Engineering Outcomes Ltd dated 15 February 2006
  - Report by Focus Technology Lighting dated 29 May 2006
  - The revised plans prepared by Copeland Architects and Argon Construction Ltd dated 19 February 2009.
  - The capacity of the southern grandstand is 3077 people and the capacity of the terraces is 2300 people and the total capacity of the Northland Event Centre is 20,000 people.

#### **Retail Sales**

2. ~~Retail activities (excluding those facilities directly associated with activities in the Northland Events Centre/stadium such as food and drink vendors), shall be limited to a total area of~~



~~6,200 square metres to be located under the southern grandstand and single ticket office area of 400 square metres under the western terrace. Each store under the southern grandstand shall have a minimum floor area per tenant/store of 450 square metres, which shall not be further subdivided or broken down into smaller leasable areas, nor shall any "concessionaire" stalls be established. Retail activity shall not comprise supermarkets, food or alcohol outlets, restaurants, bars or nightclubs.~~

~~2A. Hours of operation for retail activity shall extend from 6.00am to 12 midnight.~~

### Signs

3. The signage associated with the Northland Events Centre, excluding that proposed for any retail and office components of the development, shall be carried out in general accordance with those plans submitted with the application dated December 2005 and the revised plans prepared by Butt Design Group and Ignite Architects Ltd dated 7 July 2006.
4. Any signage proposed for retail and office components of the development shall comply with Rule 30.9 Signs in the Business 2 Zone in the Whangarei District Plan with the exception of subsections (b)(iv), (b)(viii) and (b)(ix). These subsections are replaced by the following restrictions:
  - a. There is no limit on the number of signs permitted for each tenancy,
  - b. The total area of all signage for each tenancy is limited to 6m<sup>2</sup>.

### Landscaping

5. A landscape plan shall be prepared and submitted to Council for approval from the Parks and Reserves Manager prior to the issue of a building consent. The landscape plan is to be based on the landscape concept prepared by Natural Habitats Landscape (24771 – LA01) and is to reflect the issues detailed in the report prepared by Littoralis Landscape Architecture dated 8 February 2006. The planting shall recognise and reflect the need to mitigate the scale of the proposed building and to provide amenity for the car park areas. It shall detail the following:
  - a. The number, position, spacing and species of all proposed planting
  - b. The planting and (where appropriate) staking techniques to be utilised, as well as a planting programme (i.e. timeframe).
  - c. The on-going maintenance of all plantings, including mulching and a plant replacement programme for a period of not less than 5 years from the date of the issue of the consent.
  - d. The timetable to be followed in relation to any staging of the construction of the Northland Events Centre so as to ensure that planting does not have to be removed to allow construction.
6. Planting in accordance with the timetable set out in the approved landscape plan is to be started within the first planting season (approximately March – September) directly following the approval of the landscape plan, and maintained from that point onwards to the satisfaction of the Parks Manager.

All landscaping areas shall be at least two metres in width.

### Engineering

8. Prior to the commencement of construction works on the site for the proposed development the consent holder must submit a detailed set of engineering plans prepared in accordance with Council's Environmental Engineering Standards. The engineering plans are to be submitted to the Senior Environmental Engineering Officer for approval prior to the issue of a building consent.

The plans are to include as applicable:



- a. The ***northern car park*** is to be retained in its current state, providing car parking for at least 60 cars.
  - b. Design details of water main extensions inclusive of any valves, bulk water meters and connections necessary to service the proposed buildings, inclusive of calculations.
  - c. Design details of sewerage mainline reticulation inclusive of any manholes, fittings and connections (150 mm dia) necessary to service the proposed buildings.
  - d. Design details of stormwater mainline reticulation inclusive of any upgrades to the existing reticulation, sumps, manholes, treatment devices, detention structures and connections necessary to service the development to the approval of the Waste and Drainage Manager.
  - e. All earthworks, retaining walls are to be designed by a Chartered Professional Engineer.
  - f. Design details of the south stand car parking area not less than ~~300~~ **184** parking stalls (including mobility parking spaces) with no dead-end aisles, (unless specifically approved by Council's Roading Manager), at least 2 loading areas, ~~appropriate waste storage and collection facilities (for retail tenants)~~, associated access, manoeuvring areas, cycleways, footpaths, landscaped areas and vehicle entrance from Okara Drive in general accordance with the plans submitted with the application (version F, dated 6 December 2005 Natural Habitats) prepared by Copeland Architects and Argon Construction dated 19 February 2009 and with Appendix 6 of the Whangarei District Plan. The design details for the exit from the south stand car parking area are to include dedicated left turn and right turn lanes, with associated queuing spaces to the satisfaction of the Council's Roading Manager.
  - g. Design details of upgrading Okara Drive to incorporate slip lanes and right turn bay in general accordance with the plans submitted with the application (Version F, dated 6 December 2005 Natural Habitats) and with Appendix 6 of the Whangarei District Plan. All pavement markings and associated signage are to comply with the relevant Council and national design requirements or standards.
  - h. Design details of relocating existing 1050mm dia sewerage trunk main to the approval of the Council's Waste and Drainage Manager.
  - i. All earthworks, retaining walls are to be designed by a Chartered Professional Engineer.
9. The consent holder must, prior to the commencement of earthworks on the site submit a management plan to the Council for its approval, for ground clearing, earthworks, and transportation of materials, which addresses measures for stormwater, sediment control and dust suppression. Note that condition 14 also applies in respect of earthworks.

OR

The consent holder must provide copies of any Northland Regional Council conditions of resource consent relating to earthworks, dust suppression, stormwater and sediment control and monitoring associated with these conditions.

10. Prior to occupancy of any of the proposed buildings the consent holder must:

- a. Complete all work identified on the approved plans required under condition 8 to the approval of the Senior Environmental Engineering Officer. Compliance with this condition shall be determined by way of a site inspection by the Senior Environmental Engineering Officer or a delegated representative.
- b. Submit a certified and dated "as built" plan of completed works and services, and 'RAMM' data prepared by a suitably qualified person in accordance with Council's

Environmental Engineering Standards to the approval of the Senior Environmental Engineering Officer.

- c. Ensure all fees have been paid.
- d. Submit a copy of Form C (Council's Environmental Engineering Standards) certified by a Chartered Professional Engineer to the Council's satisfaction.

## **Construction**

11. Prior to the commencement of any works on the site authorised by this consent, the consent holder shall provide a Construction Management Plan to the satisfaction of Resource Consents Manager. The Construction Management Plan shall include specific details of measures to avoid, remedy or mitigate adverse effects of the demolition, earthworks, construction and management of works associated with this development as follows:
  - a. Details of the Contractor and the site manager, including contact details (phone, facsimile, postal address). If different, details of after hours contact; and
  - b. The location of a large notice board on the site that clearly identifies the name, telephone number and address for service of the site manager and after hours contact telephone number; and
  - c. Measures to be adopted to maintain the site in a tidy condition in terms of disposal/storage of rubbish, storage and unloading of building materials; and
  - d. Measures to control dust and airborne debris; and
  - e. Measures to ensure public safety, during construction, including limitations on site access; and
  - f. Measures to locate and protect existing services adjacent to the site and where necessary, any temporary paving or fencing to protect existing pavements, trees or other site features that are to be retained; and
  - g. Measures to control traffic movements from the site during construction to ensure there are no adverse traffic effects arising during construction; and
  - h. Proposed hours of work; and
  - i. Identification of any noisy construction activities that may potentially approach or breach the appropriate noise levels; and
  - j. For each noisy activity identified, mitigation methodologies should be identified, approximate noise levels predicted (using tables from NZS6803:1999 for instance) and noise monitoring procedures specified.

The above details shall be shown on a site plan and supporting documentation as appropriate. The approved Construction Management Plan shall be implemented and maintained throughout the entire demolition and construction period. The consent holder shall comply with the Construction Management Plan at all times.

12. Prior to the commencement of any works on the site authorised by this consent, the consent holder shall submit a Construction Traffic Management Plan to the satisfaction of the Resource Consents Manager. The Construction Traffic Management Plan shall include, and not be limited to, specific details relating to avoiding, remedying or mitigating adverse effects on the environment and management of all works associated with this development as follows:
  - a. Ingress and egress to and from the site for vehicles and construction machinery during the site works period; and

- b. Proposed numbers and timing of truck movements throughout the day and the proposed routes; and
- c. Procedures for managing construction traffic.

The above details shall be shown on a site plan and supporting documentation as appropriate. The approved Construction Traffic Management Plan shall be implemented and maintained throughout the entire demolition and construction period, and updated with each ensuing Building Consent application. The consent holder shall comply with the Construction Traffic Management Plan at all times.

## Traffic

13. Prior to any event expected to attract more than 3000 people being held at the Centre the consent holder shall prepare and implement a Traffic Management Plan to the satisfaction of the Roading Manager of the Council. The plan is to be prepared in consultation with the NZ Police's District Commander for Northland (or delegated representative) and shall include, but may not be limited to, the following matters:
  - a. Traffic management of roads in the vicinity of the Northland Events Centre including the need for, and duration of, any road or lane closures, provision of temporary parking lanes, and the location of any temporary parking restrictions.
  - b. The anticipated parking demand and its extent on the surrounding road network
  - c. Operational details of bus services that will be provided for the event. These details are to include, but may not be limited to:
    - when the bus service strategy is to be employed
    - the number, type and capacity of buses to be used,
    - the frequency of bus runs before & after events, intended routes and designated pick up and drop off points,
    - measures to publicise the bus services
  - d. The provision and operational details of dedicated on-site and on-street bus facilities (including those for timetabled services, chartered buses and any other services specifically provided for the event)
  - e. The provision of dedicated permanent or temporary on-site and on-street pedestrian facilities
  - f. The provision of dedicated on-site and/or on-street facilities for taxis and emergency service vehicles (particularly Police and Ambulance)
  - g. The measures required to prevent operational problems occurring on the residential streets in the Morningside area
  - h. The measures required to accommodate or prevent any pedestrian movements across the railway tracks between the Northland Events Centre and the Morningside area
  - i. The public notification required ahead of events that will be carried out for matters that have the potential to affect the public use of the roads such as road closures and parking bans.
  - j. The contact details and qualifications of personnel who will be responsible for, and will implement, the traffic management plan for each event.
  - k. The equipment required (road cones, temporary signage etc) and their proposed locations that will be used to implement the traffic management plan, and the means of deploying it; and

- I. Any other aspects highlighted by consultation with stakeholders in the Northland Events Centre.

## Noise

14. Noise from the construction of the Northland Events Centre shall comply with the relevant limits set out in NZS 6803:1999 Acoustics – Construction Noise.
15. Apart from the exceptions identified in conditions 16, 17 and 18 below, noise from the operation of the Northland Events Centre shall at all times comply with the limit levels for the Open Space Environment set out in the Whangarei District Plan.
16. A maximum number of 100 sporting "events" (An "event" being defined as sporting activity/activities taking place on any single day. Any sporting activity/activities that occur over two or more days shall be considered as two or more "events") involving the use of any sound amplification system shall be permitted during any 12 month period provided that:
  - a. No more than 45 "events" in any 12 month period shall have a duration beyond 2000 hours.
  - b. No more than 10 events shall exceed 5 hours duration;
  - c. The sound amplification system is only used between the hours of 0900-2200 hours; and
  - d. Noise levels from the sound amplification system, excluding crowd noise, do not exceed  $L_{10}$  60 dB and  $L_{10}$  65 dB at 63 Hz at any boundary of any property zoned Living Environment.
17. A maximum number of 5 concert "events" (An "event" being defined as concert activity/activities taking place on any single day. An "event" that occurs over two or more days shall be considered as two or more "events") involving the use of any sound amplification system shall be permitted during any 12 month period provided that:
  - a. No more than two such "events" are held in any 4 week period;
  - b. No more than three events shall exceed five hours' duration;
  - c. The duration of any sound system checks, balancing and rehearsal shall not exceed a cumulative total of two hours.
  - d. The sound amplification system is only used between the hours of 1000-2200 hours from Monday to Thursday, 1000-2300 hours on Fridays and Saturdays and 1000-2200 hours on Sundays; and
  - e. In respect of two of the five permitted concert "events" noise levels from the sound amplification system, excluding crowd noise, do not exceed  $L_{10}$  75 dB and  $L_{10}$  75 dB at 63 Hz at any boundary of any property zoned Living Environment, and
  - f. In respect of three of the five permitted concert "events" noise levels from the sound amplification system, excluding crowd noise, do not exceed  $L_{10}$  85 dB and  $L_{10}$  85 dB at 63 Hz at any boundary of any property zoned Living Environment.
18. A maximum of 2 firework events shall be permitted during any 12 month period provided that:
  - a. During any fireworks event, the period of a fireworks display shall not exceed two hours;
  - b. The event finishes no later than 2200 hours apart from New Years Eve when the event must finish by 00:30 the following day;

- c. There shall be no specific noise levels to be met in relation to the fireworks display itself.
19. For compliance purposes, the noise from activities at the Events Centre shall be measured and assessed at any boundary of any property zoned Living Environment 1 in accordance with the provisions of NZS 6801:1991 Measurement of Sound and NZS 6802:1991 Assessment of Environmental Sound, except that the provisions of Clause 4.4 of NZS 6802:1991 shall not apply to compliance tests where an octave band limit level is specified.
  20. The public address system shall be a permanent installation and shall be designed by an appropriately qualified acoustician. The system design and commissioning test results shall be supplied to the Environmental Health Officer prior to its use for any event.
  21. Noise compliance monitoring shall be undertaken by a suitably qualified person at a location representative of the most exposed Morningside residential property and the results submitted to the Environmental Health Officer within two weeks as follows:
    - a. For the duration of at least two major sporting "events" within the first three months following the installation of the public address system or as soon as practicable thereafter
    - b. For the duration of the first two concert "events";
    - c. For the duration of the first fireworks event; and
    - d. At any other time as instructed by the Environmental Health Officer.

The costs of noise compliance monitoring are the responsibility of the consent holder

- 21A. In complying with the requirements of conditions 16 and 17 the best practicable option to minimise noise emission shall be undertaken in the design, placement, orientation, use of amplification systems, (but this does not extend to the selection, design and use of building materials and construction fit out of the grandstands and associated structures). Before any building consent is issued the consent holder shall provide evidence that it has used the best practicable option under this condition to minimise the emission of noise from the site to the satisfaction of the Council's Environmental Health Officer.

## Lighting

22. Spill light shall not exceed an average of 10 lux at the stadium boundary at any time and in no place shall it exceed 25 lux when measured at 1.5m above the legal boundary of the Northland Events Centre at 10m spacings, in either a vertical or horizontal plane.
23. Spill light shall not exceed 10 lux (vertical) at any window of residences on Morningside Road. If spill light is found to exceed this level the lights causing the spill shall be re-aimed or fitted with glare shields within three months of any complaints.
24. Lighting for amenity, and parking areas shall use luminaires that produce no lighting above the horizontal.
25. Lighting for exterior car parks shall conform with the requirements of AS/NZS1158.3.1: 2005 Category P11a, and pedestrian/amenity areas to Category P2.
26. Full night match lighting, until 2000 hours is permitted for 55 days per year. Full night match lighting until 2200 hours (Sunday– Thursday) and until 2300 hours (Friday – Saturday) is permitted for 45 days per year.
27. Floodlights may be used for up to five nights per week at 50% intensity for training purposes.

28. Main floodlighting shall be reduced to half intensity within 30 minutes of the end of an "event" and may not be turned on more than 4 hours before an "event."
29. Spill lighting controls towards Morningside may be waived during a period of 12 months while the old south stand is demolished and the new is under construction. However, if, as a result of the reconstruction of the South Stand, spill lighting levels in Morningside exceed the standard in these conditions, the number of games played at night and requiring floodlights during this time and until such time as the new south stand has been completed will be halved (i.e. to 22 games) during this period. On the other hand, if the reconstruction of the South Stand does not result in spill light levels exceeding the standard there will be no reduction in the number of night games permitted.
30. Construction lighting shall be suitably aimed or shrouded during the construction period, so as to avoid glare or truck headlight "sweep".
31. Floodlights may be turned on during the day between 0800 hours and 1700 hours in order to carry out maintenance.

### **Review**

32. Pursuant to s.128 of the Resource Management Act 1991 the Council may serve notice on the consent holder of its intention to review conditions 13, 16, 17 and 18 of this consent on an annual basis following the granting of the consent in order to deal with any adverse effect which may arise from the exercise of the consent and which it is appropriate to deal with at a later time.
33. There shall be regular monitoring of the light spill levels every two years from the date of this consent and after any structural maintenance work is carried out on the lights or supporting structure. Monitoring shall be carried out by the Council or an appropriately qualified lighting engineer assigned by the Council to check compliance. Should the levels be higher than the permitted conditions, the lights shall be suitably re-aimed.
34. Pursuant to s.128 of the Resource Management Act 1991 the Council may serve notice on the consent holder of its intention to review conditions 26, 27, 28 and 29 inclusive in order to deal with any lighting effects which may be proposed or which may arise specifically from the holding of events associated with the Rugby World Cup in 2011, which it is appropriate to deal with at a later time.

### **Bond**

35. Pursuant to Sections 108(2)(b) and 108A of the Resource Management Act 1991 a bond shall be entered into in respect of the landscaping, under conditions 5 and 6, to cover ongoing maintenance and failed plant replacement costs of the plantings over a 3 year period. The amount of the bond shall be calculated for all allotments by Council's Parks Landscape Officer based on the information supplied in the landscaping plan submitted under condition 5 with the bond being calculated on the basis of one and one-half times the value of the works required with that value being provided in the form of a quote from a recognised provider of the particular works.

The bond shall be prepared by the Council's solicitor at the expense of the consent holder and shall be drawn if required by the Council in a form enabling the bond to be registered pursuant to S.109 of the Resource Management Act 1991 against the title or titles to the land to which the bond relates.

Performance of the bond shall be guaranteed by a guarantor acceptable to the Council. A recognised bank trading in New Zealand shall be deemed to be an acceptable guarantor. A guarantor of a bond may be substituted with a cash bond.

### **Advice Notes:**

1. The consent holder must comply with the Council's specific practices before commencing any work on Council's roads and/or infrastructure. Inspections and approval of works by Council's representative is required.
2. All stormwater runoff from the development shall be directed through the approved treatment device(s) in accordance with ARC TP10 to achieve the required Northland Regional Council's water quality standards. Where roof runoff is unable to be directed through the treatment device(s), the applicant will be required to restrict roofing materials to those not containing elevated levels of contaminants.
3. Resource consent engineering plan approval and subsequent construction works are not approved by the building consent process.
4. Any temporary work and any required connections to and from existing Network Providers services will require permits or approvals from that Network Service Provider. This consent provides a requirement for the services but does not negate any required applications, permits and approvals necessary from the Network Provider for that service connection.
5. Council's policy prohibits the building of any structure over an existing reticulation main.
6. Pursuant to Section 102 of the Local Government Act 2002, the Whangarei District Council has prepared and adopted a Development Contributions Policy. Under this Policy, the activity to which this consent relates is subject to Development Contributions. The consent holder will be advised of the assessment of the Development Contributions payable under separate cover in the near future. It is important to note that the Development Contributions must be paid prior to commencement of the work or activity to which this consent relates or, in the case of a subdivision, prior to the issue at a Section 224(c) Certificate. Further information regarding Councils Development Contributions Policy may be obtained from the Long Term Community Consultation Plan (LTCCP) or Councils web page at [www.wdc.govt.nz](http://www.wdc.govt.nz).
7. All archaeological sites are protected under the provisions of the Historic Places Act 1993. It is an offence under that Act to modify, damage or destroy any archaeological site, whether the site is recorded or not. Application must be made to the New Zealand Historic Places Trust for an authority to modify, damage or destroy an archaeological site(s) where avoidance of effect cannot be practiced.
8. If a contaminated site should be uncovered during the construction of the Northland Events Centre both the Whangarei District Council and the Northland Regional Council should be contacted and advised of the situation to enable the appropriate course of action to be taken.

### **Reasons for the Decision**

Pursuant to Section 113 of the Act the reasons for the decision are as follows:

**Decision 1**                      **That pursuant to Sections 95A – 95F of the Act, this Section 127 application LU0639432.04 to cancel conditions 2 and 2A and change condition 8(f) of consent relating to LU0639432 (RC 39432) issued to Whangarei District Council proceed on a non-notified basis for the following reasons:**

- 1     The effects presented within this application are consistent with those considered within LU0639432 (RC 39432) and therefore Section 127 is the appropriate mechanism to authorise the proposed changes.
- 2     It is considered that there will be no adverse effects on the environment as a result of this proposal as there will be no built changes on the site.
- 3     No persons are considered adversely affected by the proposal.
- 4     There are no special circumstances to warrant notification.

**Decision 2**                      **Having considered the application against the relevant provisions of the Act it is recommended that this Section 127 application to cancel conditions 2 and 2A and change condition 8(f) of consent relating to LU0639432 (RC 39432) issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:**

- 1     The actual and potential effects of the change of conditions will be nil as the proposal is being sought in retrospect and the stadium and carpark has been constructed in accordance with the changes proposed under this consent.
- 2     The proposed amendments are considered consistent with the relevant objectives and policies of the Operative District Plan, and Part 2 of the Act.
- 3     There are no other matters considered relevant to making an appropriate consideration of this application.

### **Advice Note**

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- 1     Section 357 of the Resource Management Act 1991 provides a right of objection to this decision. Objection must be in writing, setting out the reasons for the objection, delivered to Whangarei District Council within 15 working days after the decision has been notified to you. A fee may be payable to cover the costs of processing any objection.




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Pip Beachen, Consultant Planner (Barker & Associates)

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26 November 2017  
Date




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Alan Withy  
Independent Commissioner

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2 December 2017

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Date



## Change/ Cancellation of Consent Condition(s) - Section 127 of the Resource Management Act 1991

### 1 Cancellation to Conditions Details

|                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Council Reference</b>                         | LU0639432.04, PID109571 (124941)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Reporting Planner</b>                         | Pip Beachen (Consultant Planner, Barker & Associates)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>Applicant</b>                                 | Whangarei District Council                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Application</b>                               | Application to delete condition 2 and 2A and amend condition 8(f) of the original consent, LU0639432. Deleting conditions 2 and 2A are to ensure that no retail sales be permitted on the site. As this reduces the requirement for parking spaces, the amendment to condition 8(f) is to reduce the number of parking spaces required on site. The proposal will not result in any built changes to the site.                                                                                                                                                   |
| <b>Original Council Application Reference</b>    | LU0639432 (RC 39432)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Original Application</b>                      | To redevelop Okara Park into a regional events centre incorporating two new grandstands and terraces to accommodate 24,319 people (including 9938 public seats, 1021 corporate seats and 13,360 people on terraces), changing rooms and other service and officials rooms, a grass field for sporting events, concerts and other outdoor events, a conference centre to hold 1000 people, a kitchen, corporate boxes, retail space (6,200m <sup>2</sup> ) and office space (5500m <sup>2</sup> ) in the south grandstand and associated parking and landscaping. |
| <b>Property Address</b>                          | Port Road, Whangarei                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Legal Description</b>                         | Lot 3 DP 208275                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Date Received</b>                             | 3 November 2017                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Site Visit</b>                                | 7 November 2017                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Distributions</b>                             | None required.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>Application of NES for Contaminated Soils</b> | The original proposal was processed prior to the NES for Contaminated Soils coming into effect. It is therefore considered that this does not need to be considered as a part of this Section 127.                                                                                                                                                                                                                                                                                                                                                               |
| <b>Section 37</b>                                | No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

### 2 Description of Proposal

The proposal seeks to delete conditions 2 and 2A of the original resource consent LU0639432 (RC 39432) in order to remove the provision for retail sales on the site. The applicant has outlined that these conditions should have been deleted as a part of LU0639432.02 which sought a redesign of the originally consented stadium to remove retail activities from the site, among other changes. However, the conditions in relation to the retail activities were not deleted and as a result the parking requirements for the retail components of the activity in condition 8(f) also remained. The stadium and parking facilities have been constructed in accordance with the plans consented under LU0639432.02 and as such, the proposed amendments will not result in any built changes to the site. The current proposal is to ensure that the consent conditions are consistent with the changes that were considered as a part of LU0639432.02.

This proposed amendment to condition 8(f) seeks to reduce the number of car parks required in the southern car parking area on site from 300 to 184 which is the current situation on the site. The condition is proposed to be amended as follows:

*Design details of the south stand car parking area not less than ~~300~~ 184 parking stalls (including mobility parking spaces) with no dead-end aisles, (unless specifically approved by Council's Roading Manager), at least 2 loading areas, ~~appropriate waste storage and collection facilities (for retail tenants)~~, associated access, manoeuvring areas, cycleways, footpaths, landscaped areas and vehicle entrance from Okara Drive in general accordance with the ~~plans submitted with the application (version F, dated 6 December 2005 Natural Habitats) prepared by Copeland Architects and Argon Construction dated 19 February 2009 and with appendix 6 of the Whangarei District Plan.~~ The design details for the exit from the south stand car parking area are to include dedicated left turn and right turn lanes, with associated queuing spaces to the satisfaction of the Council's Roading Manager.*

### 3 Statutory Context

Section 127 of the Resource Management Act 1991 (the Act) allows for the change or cancellation of a condition or conditions of resource consent (other than a condition as to the duration of the consent).

Sections 88 to 121 of the Act apply to the consideration of the application, with all necessary modifications, as if:

- a the application was for resource consent for a discretionary activity; and
- b the references to the resource consent and the activity were references only to the change or cancellation of a condition and the effects of the change or cancellation respectively.

For the purposes of determining who is adversely affected by the change or cancellation of condition, a local authority must consider, in particular, every person who:

- a made a submission on the original application; and
- b may be affected by the change or cancellation of condition.

### 4 Consideration

The main point to consider when assessing whether an application should be processed as a Section 127 change of conditions or a new application, is whether the proposed change in conditions will result in a "fundamentally different activity" or "an activity having materially different adverse effects" to those that lawfully exist or that were assessed under the original application.

It is considered that the proposed amendments to the approved consent will not generate any further adverse effects than those already allowed for in the original application as there will be no changes to the built development of the site due to the proposed amendments of the conditions being for completeness, to tidy up mistakes in the previous change of consent conditions LU0639432.02 issued in 2009.

Accordingly, it is considered suitable for the proposal to be treated as a Section 127 as opposed to a new application.

Pursuant to Section 127(3)(a), this application for a change of conditions is processed as a Discretionary Activity.

#### Assessment of Effects

The current application seeks to amend conditions of consent LU0639432 (RC 39432) to remove the provision of retail space in the existing stadium and consequently, reduce the number of parking spaces required to be provided. These amendments are sought in retrospect as the development of the stadium and parking area has already taken place. Due to this, it is considered that the proposal will not generate any additional adverse effects beyond those which may have already been considered in the original application.

Additionally, it is considered that the number of parking spaces provided and sought to be consented under this application is appropriate for the activity on the site. The original consent required that 300 parking spaces be provided to accommodate for the office and retail activities originally proposed to be on the site that equated to 5,510m<sup>2</sup> and 6,200m<sup>2</sup> of GFA respectively. Following an amendment to the design in 2009 (LU0639432.02) which removed all retail activities as well as significantly reducing the GFA of office activities to 480m<sup>2</sup>, the requirement for car parking was reduced to only 14 car parks. Therefore, it is considered that the 184 car parks constructed on the site are adequate to serve the activities operating on the site.

Therefore, the effect of the requested amendments to the conditions is considered to be nil.

### **Special Circumstances - Section 95A(9)**

Section 95A(9) of the Act states that a consent authority may also publicly notify an application for resource consent if it decides that special circumstances exist in relation to the application. In this case, there are no special circumstances in relation to the application.

Thus for these reasons, it is considered that there are no special circumstances to warrant public notification under Section 95A(9).

## **5 Adversely Affected Parties**

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As per the decision for LU0639432.02, no persons are considered adversely affected by the proposal because the change to the conditions does not give rise to any externalised adverse effects. Therefore, it is considered that the application can proceed on a non-notified basis.

## **6 Section 104 Assessment**

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Matters to be considered by Council when assessing an application for resource consent under Section 104 of the Resource Management Act 1991 include (subject to Part II) any actual and potential effects on the environment as a result of the change, any relevant objectives, policies, rules or other provisions of a Plan or Proposed Plan, and any other relevant matters.

Pursuant to Section 127(3) of the Act, the consideration of effects is limited to the effects of the change/cancellation only. This assessment does not revisit or reassess the original proposal in its entirety.

### **Section 104(1)(a) – Actual and Potential Effects on the Environment**

An assessment of effects has been undertaken in section 4 and 5 of this report, whereby it was concluded that any adverse effects on the environment resulting from the proposed change and cancellation of conditions will be less than minor. The matters discussed and conclusions reached are also applicable to Section 104(1)(a) considerations and it is not considered relevant in this particular circumstance to undertake an assessment of the revised proposal against the objectives and policies of the District Plan. Overall, it is considered that there will be no actual or potential effects of the activity on the environment as a result of this consent.

### **Relevant Policy Statements, Plans or Proposed Plans (Section 104(1)(b))**

Section 104(1)(b) of the Act sets out that when considering an application for resource consent, Council shall have regard to any relevant provisions of policy statements, or plans or proposed plans. Having regard to this, the relevant statutory documents in this case, are addressed below.

Having regard to the proposal, the proposed changes to the consent conditions will not require any greater consideration of the relevant objectives and policies of the relevant planning documents that were considered at the time the original consent was granted.

### **Other Matters (Section 104(1)(c))**

There are no other matters considered relevant to making an appropriate consideration of this application.

## **7 Part 2 Matters**

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Part 2 of the RMA 1991 promotes the sustainable management of natural and physical resources whilst avoiding, remedying or mitigating adverse effects on the environment. The application is considered to be consistent with those matters detailed within Part 5.

The overarching intent of the purpose and principles of the Resource Management Act 1991 was taken into consideration during the assessment of the original application. No apparent conflicts with the purpose and principles of the Act were identified at this stage. It is considered that the proposed cancellations and changes to the conditions will not offend against Part 2 of the Act.

## **8 Conclusions and Recommendations**

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**Recommendation 1** That pursuant to Sections 95A – 95F of the Act, this Section 127 application LU0639432.04 to cancel conditions 2 and 2A and change condition 8(f) of consent relating to LU0639432 (RC 39432) issued to

**Whangarei District Council proceed on a non-notified basis for the following reasons:**

- 1 The effects presented within this application are consistent with those considered within LU0639432 (RC 39432) and therefore Section 127 is the appropriate mechanism to authorise the proposed changes.
- 2 It is considered that there will be no adverse effects on the environment as a result of this proposal as there will be no built changes on the site.
- 3 No persons are considered adversely affected by the proposal.
- 4 There are no special circumstances to warrant notification.

**Recommendation 2 Having considered the application against the relevant provisions of the Act it is recommended that this Section 127 application to cancel conditions 2 and 2A and change condition 8(f) of consent relating to LU0639432 (RC 39432) issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:**

- 1 The actual and potential effects of the change of conditions will be nil as the proposal is being sought in retrospect and the stadium and carpark has been constructed in accordance with the changes proposed under this consent.
- 2 The proposed amendments are considered consistent with the relevant objectives and policies of the Operative District Plan, and Part 2 of the Act.
- 3 There are no other matters considered relevant to making an appropriate consideration of this application.



\_\_\_\_\_  
Pip Beachen  
Consultant Planner (Barker & Associates)

\_\_\_\_\_  
26 November 2017  
Date



\_\_\_\_\_  
Alan Withy  
Independent Commissioner

\_\_\_\_\_  
2 December 2017

\_\_\_\_\_  
Date

## Section 127 of the Resource Management Act 1991

### Change or Cancellation of Consent Condition(s)

LU0639432.06 P165930

#### 1 Cancellation/Change to Conditions Details

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|                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Council Reference</b>                      | LU0639432.06                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>Reporting Planner</b>                      | Alisa Neal (Consultant Planner – Barker & Associates)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Applicant</b>                              | Whangarei District Council - Parks and Recreation                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Application</b>                            | The Cobham Oval Cricket Grounds includes approximately 1.8ha of land area as well as associated sports club facilities which accommodate up to 675 people. The Application seeks consent for a reduction in the number of carparks to allow for the upgrade and formalisation of the currently unsealed carpark at the Cobham Oval Cricket Grounds. A total of 217 car parking spaces will be provided on the site.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>Original Council Application Reference</b> | LU01/830.01                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Original Application/s</b>                 | <p><i>The original application for Resource Consent (Council's ref: LU01/830/01) by Whangarei District Council sought to establish a place of assembly for various functions both related to and independent of the cricket activity at the corner of Port Road and Okara Drive being Section 2 SO 477156 &amp; Section 1 SO 477156. This consent provided parking for 331 cars and two buses that at the time were proposed to be used in tandem with the adjoining Okara Park rugby ground. The Okara Park rugby ground has since been redeveloped to include 184 onsite carparking spaces (see consent reference LU0639432.04), and the Cobham Oval Cricket Grounds carpark no longer forms the parking requirements for Okara Park.</i></p> <p><i>In November 2006, a variation was sought and granted to amend condition 1 of the original cricket pavilion consent, LU01/830, to refer to amended site plans, of which the score boards were relocated to opposing sides of the playing grounds. The decision notes:</i></p> <p><i>"No additional rules are infringed from this change in excess of those already infringed as part of the original consent" (LU01/830 s127 Considerations pg.2)</i></p> <p><i>On 30th December 2009 the Whangarei District Council (WDC) granted resource consent approval to the Northland Cricket Association under reference LU0900124 to construct a second pavilion and erect additional signage at Cobham Oval. Reasons for the decision note the following:</i></p> <p><i>"There will be no perceivable increase in on-site activity as a result of the proposal, with the level of use generally consistent with the level of activity granted under the original resource consent for the cricket facility (albeit incorporating a second smaller scale building designed to complement the existing pavilion)." (LU0900124 Decision pg.3).</i></p> <p><i>While carparking was demonstrated on the plans submitted with this application, a variation to the carparking requirements was not included in the scope of the consent. The consent relied on the existing carparking requirements of LU01/830.01.</i></p> |

|                          |                                           |
|--------------------------|-------------------------------------------|
| <b>Property Address</b>  | Corner of Okara Road and Port Road        |
| <b>Legal Description</b> | Section 2 SO 477156 & Section 1 SO 477156 |
| <b>Date Lodged</b>       | 13 May 2020                               |
| <b>Date Received</b>     | 13 May 2020                               |
| <b>Site Visit</b>        | 29 May 2020                               |

#### **Distributions**

| <b>Internal</b>                          | <b>Date sent</b> | <b>Amendments sent</b> | <b>Comments received</b> |
|------------------------------------------|------------------|------------------------|--------------------------|
| Bhupinder Gill<br>(Development Engineer) | 13 May 2020      | N/A                    | 27 May 2020              |
| <b>External</b>                          | <b>Date sent</b> | <b>Amendments sent</b> | <b>Comments received</b> |
| N/A                                      | N/A              | N/A                    | N/A                      |

#### **Further Information**

A further information request was sent on 2 June 2020, requesting the following information to be provided:

- Copy of all Record of Titles relevant to subject site;
- Clarification of proposed works in relation to property boundary;
- Clarification on number of existing and proposed car parking spaces being provided;
- Copy of existing approved site plan;
- Confirmation that the proposed change in conditions will not result in required changes to other consent that relies on the same car parking arrangements;
- Rule assessment and Objectives and Policies assessment of Operative District Plan and Proposed Plan Changes;
- Further assessment of landscaping infringement including extent and proposed mitigation;
- Engineering Design matters identified by the Development Engineer

A complete further information response was provided on the 6 July 2020, addressing all of the above matters.

## **2 Description of Proposal**

The existing Place of Assembly (The Cobham Oval Cricket Grounds) is consented for up to 675 people and includes approximately 1.8ha of land area as well as associated sports club facilities.

The Application seeks consent pursuant to Section 127 of the Resource Management Act 1991, to allow for a reduction in the number of carparks to allow for the upgrade and formalisation of the currently unsealed carpark at the Cobham Oval Cricket Grounds. A total of 217 car parking spaces will be provided on the site. No changes are proposed to the existing activity and associated buildings and sports clubs on the subject site, including their associated hours of operation. It is noted that the Okara Park rugby ground has since been redeveloped to include 184 onsite carparking spaces (see consent reference LU0639432.04), and the Cobham Oval Cricket Grounds carpark no longer forms the parking requirements for Okara Park. The applicant has demonstrated that no other existing consents that relate to activities on the site will be impacted by the proposed changes.

The existing vehicle access/egress points onto Port Road and Okara Drive will continue to be utilised. The existing crossing on Port Road is proposed to be upgraded in accordance with the Councils Environmental Engineering Standards 2010.

The application is supported by an Indicative Planting Plan by Whangarei District Council, referenced WDC – JW -06/07/2020. A lighting design plan was also provided on 29 July 2020 to demonstrate compliance with the relevant lighting standards.

Specifically, the changes outlined above will involve a change to condition 1 (general accordance condition), condition 2 and 3 (landscaping conditions).

It is noted that no other consequential changes to additional conditions, or no imposition of further conditions are required.

### 3 Statutory Context

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Section 127 of the Resource Management Act 1991 (the Act) allows for the change or cancellation of a condition or conditions of resource consent (other than a condition as to the duration of the consent), prior to the deposit of the survey plan.

Sections 88 to 121 of the Act apply to the consideration of the application, with all necessary modifications, as if:

- a the application was for resource consent for a discretionary activity; and
- b the references to the resource consent and the activity were references only to the change or cancellation of a condition and the effects of the change or cancellation respectively.

For the purposes of determining who is adversely affected by the change or cancellation of condition, a local authority must consider, in particular, every person who:

- a made a submission on the original application; and
- b may be affected by the change or cancellation of condition.

### 4 Consideration

---

The main point to consider when assessing whether an application should be processed as a section 127 change of conditions or a new application, is whether the proposed change in conditions will result in a “fundamentally different activity” or “an activity having materially different adverse effects” to those that lawfully exist or that were assessed under the original application.

The original proposal was to construct and operate a new first-class cricket facility including associated facilities and function rooms, including parking for 331 cars and two buses, landscaping, earthworks and new accesses/crossings.

The original proposal was assessed as a Non-Complying Activity. Pursuant to section 127(3)(a), this application for a change of condition is processed as a discretionary activity.

The previous change of condition application (reference LU01/830) consented to a change in location of the scoreboard to between 2.5m and 3.6m from the Port Road boundary through the section 127 process.

This application proposes to change conditions of LU01/830.01 to reflect the proposed upgrade and formalisation of the currently unsealed carpark at the Cobham Oval Cricket Grounds. A total of 217 car parking spaces will be provided on the site. No changes are proposed to the existing activity and associated buildings and sports clubs on the subject site, including their associated hours of operation.

No additional rules are infringed from the proposed changes outlined above, in excess of those already infringed as part of the original consent. The number of car parks that will be provided are well within the number of carparks required by the district plan. The proposed formation of the carpark will result in an infringement with Rule 46.3.3(b) which requires that no formed parking space is constructed or provided within 2m of a road boundary. Small parts of approximately 8 car parking spaces extend into this 2m setback requirement as shown in figure 1 below:





Figure 1 part of site plan showing encroachment of car parking areas into 2m road setback requirement

On this basis, it is considered that these changes will not result in a fundamentally different activity to what was consented, nor will they have any materially different adverse effects to those that were considered under the original application. Accordingly, it is considered suitable for the proposal to be treated as a section 127 as opposed to a new application.

## 5 Notification Assessment (Sections 95A-B, and D)

### Statutory Matters – Public Notification s95A

Section 95A of the Resource Management Act 1991 (the Act) provides the process to consider public notification.

In this instance the applicant has not requested public notification; and public notification is not required under section 95C; and the application is not made jointly with an application to exchange recreation reserve land being it is a s127 application. Therefore public notification is not mandatory.

Consideration as to whether public notification is precluded now needs to occur. In this instance the application is to be considered as a discretionary activity and is not related to the subdivision of land or a residential activity and as such is not precluded from public notification.

Since the application is not precluded from public notification it needs to be determined whether the application is subject to a rule or national environmental standard (NES) that requires public notification; or that the activity is likely to have adverse effects that are more than minor. In this instance the activity is not subject to a rule or NES that requires public notification; and the effects are not considered to be more than minor based on the below assessment.

### Assessment of Effects

For the purpose of this section 95 assessment, Council has limited its discretion to consider only the effects of the changes proposed. Having regard to the above and after undertaking an analysis of the application, the adverse effects of the activity on the wider environment are discussed below. Only those effects which extend beyond the site have been considered.

The application seeks to amend conditions of consent LU01/830.01 to formalise the existing car park. This involves sealing and marking the carpark and providing 217 parking spaces, providing water sensitive urban design through proposed stormwater treatment and management, improvements to safety through the use of lighting and CCTV with CPTED guiding principles applied, and improvements in amenity and quality stormwater treatment through proposed landscaping design. It is considered that the proposal will not generate any additional adverse effects beyond those which may have already been considered in the original application for the following reasons:



- In regards to the proposed changes to the carpark, this is an activity that is anticipated for and that is already existing on the site. As outlined above, the proposal will not result in any changes to the scale of the existing activities that are consented to operate on the site, and subsequently will not involve an increase in traffic movements or parking requirements on the subject site. The proposed parking area will provide for parking spaces that are well within the minimum thresholds stipulated within Chapter 47 of the Operative District Plan. The proposed development will also meet the permitted lighting, noise, earthworks and signage requirements specified in the District Plan.
- The non-compliance with the road setback/landscaping requirements will not detract from the streetscape amenity of the locality. While it is acknowledged that there could be potential adverse visual effects associated with the proposed extent of hard surfacing over the site, the design of the carparking area has been carefully considered through the use of a mixture of landscaping and hard materials to assist in breaking up the expanse of the parking area. Implementation of the planting plan will assist in creating a green edge to the streetscape, softening the hard expanse of the carparking throughout the site, managing stormwater and integrating the built form to the existing neighbourhood character.
- It is considered that the number of parking spaces provided and sought to be consented under this application is appropriate for the activity on the site, being well within the minimum parking requirements set out in Chapter 47 of the Operative District Plan. The original consent required that parking for 330 car parking spaces be provided to accommodate for the activities on the site as well as the activities operating on the adjoining Okara Park rugby ground site. Following a redevelopment of the Okara Park which provided for 184 carparks to serve the activities operating on the site (consent reference LU0639432.04), the Cobham Oval Cricket Grounds carpark no longer forms the parking requirements for Okara Park. Therefore, the effect of the requested amendments to the number of car parking spaces is considered to be **nil**.
- Councils Development Engineer, Bhupinder Gill, has reviewed the proposed parking and is satisfied that the proposed access, parking and manoeuvring, are considered to be sufficient. From the wider environment, relying on the review advice from Councils Development Engineer, it is considered the existing and proposed access arrangements and manoeuvring and parking arrangements, will ensure a safe and efficient connection to the transport network and no additional traffic will be generated by the proposal. As such, any traffic effects of the activity are considered to be no more than minor.

Based on the above, it is considered that the adverse effects of the proposal on amenity values and traffic will be less than minor.

#### **Statutory Matters – Limited Notification s95B**

Pursuant to Section 95B(2) there are no affected protected customary rights groups; or affected customary marine title groups.

Pursuant to Section 95B(3) no land subject to a statutory acknowledgement is affected.

Therefore based on the above there is no requirement to notify; it needs to now be considered whether the application is precluded from notification.

Pursuant to Section 95B(6) the application is not precluded from limited notification; there are no special circumstances that exist.

Pursuant to Section 95E the consideration needs to be if a person is an affected person, this consideration sits below in part 6 of this report.

## **6 Adversely Affected Parties**

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### **Section 95**

If the application is not publicly notified under section 95A RMA, it must be decided if there are any affected persons and give limited notification to those persons. Section 95B sets out the steps that must be followed to determine if limited notification is applicable.

1. Under step 1, limited notification is not mandatory as:
  - a. there are no protected customary rights groups or customary marine title groups affected by this proposal; and

- b. no persons to whom a statutory acknowledgement is made is adversely affected by this proposal.
2. Under step 2, limited notification is not precluded as:
  - a. there is no rule or NES that specifically precludes limited notification of the activities; and
  - b. the application is for an activity other than those specified in section 95B(6)(b), being the activity does not have a controlled status and isn't a prescribed activity.
3. Under step 3, if not precluded by step 2, certain other affected persons must be notified.

Section 95B(7) requires determination as to whether, in accordance with section 95E, the following persons are affected persons – in the case of a boundary activity, an owner of an allotment with an infringed boundary; and in the case of any activity prescribed under section 360H(1)(b), a prescribed person in respect of the proposed activity. Section 95B(8) then requires, in the case of any other activity, determination whether a person is an affected person in accordance with section 95E. Section 95B(9) requires each affected person identified in (7) and (8) to be notified.

In deciding an affected person under section 95E, a consent authority:

- May disregard an adverse effect of the activity on a person if a rule or national environmental standard permits an activity with that effect (i.e. council may consider the 'permitted baseline');
- Must, if the activity is a controlled activity or a restricted discretionary activity, disregard an adverse effect of the activity on the person if the effect does not relate to a matter for which a rule or a national environmental standard reserves control or restricts discretion; and
- Must have regard to every relevant statutory acknowledgement made in accordance with an Act set out in Schedule 11 of the Act.

Further, and pursuant to section 95E(3)(a), a council must not consider that a person is affected if they have given their written approval or pursuant to section 95E(3)(b) it is unreasonable in the circumstances to seek that person's approval. No written approvals have been provided in support of the application.

Having specific regard to this application, **limited notification is not required** as:

1. This application is not solely for a boundary activity or prescribed activity; and
2. There are no adversely affected persons. An analysis of the application's adverse effects on the localised environment, including any proposed mitigation measures, are discussed below.

#### **Assessment of Localised Environmental Effects**

Parties considered for the limited notification assessment include:

- The owners and occupiers of the immediately adjoining properties;
- Council's Roading department, being the administrative authority for the local roading network within the district.

After undertaking an analysis of the application, including any proposed mitigation measures, the adverse effects of the activity on the localised environment are discussed below.

An assessment of the activity on the wider environment has been undertaken above. It was determined that the effects would be less than minor for the reasons stated previously. It is considered that these findings also apply here, notably those regarding anticipated levels of landscaping within the road setback.

With regards to the localised environment, the following comments are made in summary:

- The proposal will not increase the scale of the existing activity or the associated traffic generation and parking demand on the site.

- With the implementation of the landscaping plan no adverse effects on the environment arise from the identified areas of non-compliance as the proposal will contribute towards the amenity values of the immediate locality.
- Councils Development Engineer, Bhupinder Gill, has reviewed the proposed parking and is satisfied that the proposed access, parking and manoeuvring, are considered to be sufficient. From the wider environment, relying on the review advice from Councils Development Engineer, it is considered the existing and proposed access arrangements and manoeuvring and parking arrangements, will ensure a safe and efficient connection to the transport network and no additional traffic will be generated by the proposal.

Overall, for the reasons outlined above, adverse effects on all parties considered as part of the localised environment will be less than minor. There are no affected persons under s95E.

### **Special Circumstances**

Under step 4, there are no special circumstances that warrant the application being limited notified to any persons. The reasoning indicated above for step 4 of the public notification decision also applies here.

### **Section 127(4)**

The original application to construct a new first-class cricket oval and associated facilities (LU01/830.01) was publicly notified. 4 submissions were received in total, all in opposition. All nature of activities and hours of operation, as well as traffic concerns relating to any future harbour road crossing that could involve the area around the site.

Whilst concerns relating to traffic were raised during processing of the original application (LU01/830.01), this application does not involve any increase in scale to the existing activities and associated traffic movements that have been consented to operate from the site.

Based on the assessments undertaken above, which have been supported by technical advice, it is considered that the effects of the proposed carpark upgrades will be consistent with, if not less than those approved under previous consents.

As such, no persons are considered adversely affected by the proposal, including those who made submissions on LU01/830.01. On this basis, it is considered that the application can proceed on a non-notified basis.

## **7 Section 104 Assessment**

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Matters to be considered by Council when assessing an application for resource consent under s104 of the Resource Management Act 1991 include (subject to Part 2) any actual and potential effects on the environment as a result of the change, any relevant objectives, policies, rules or other provisions of a Plan or Proposed Plan, and any other relevant matters.

Pursuant to section 127(3) of the Act, the consideration of effects is limited to the effects of the change/cancellation only. This assessment does not revisit or reassess the original proposal in its entirety.

### **Section 104(1)(a) – Actual and Potential Effects on the Environment**

An assessment of effects has been undertaken in section 5 and 6 of this report, whereby it was concluded that any adverse effects on the environment resulting from the proposed change/cancellation of condition(s) will be less than minor. The matters discussed and conclusions reached are also applicable to section 104(1)(a) considerations. In addition, it is considered that there will be the following potential positive effects resulting from the proposal:

- The carpark upgrades will provide the ability for the continued use of the site to facilitate sport events, whilst providing for increased safety and amenity for the users of the carpark and beyond. The newly formed carpark will be a significant asset to the Cricket Grounds, the Whangarei community, and wider Northland region, enhancing Northland's social and economic welfare.

Overall, the actual and potential effects of the activity are considered acceptable in this instance. It is considered that the receiving environment has sufficient capacity to accommodate the effects of the proposal without loss of existing levels of traffic safety and efficiency and character and amenity. In

summary, it is considered that any actual or potential effect of the activity on the environment for which consent is sought will be less than minor and acceptable.

#### **Section 104(1)(ab) – Any Measure Proposed or Agreed**

Section 104(1)(ab) requires regard to be had to any measure proposed or agreed to by the applicant for the purpose of ensuring positive effects on the environment to offset or compensate for any adverse effects on the environment that will or may result from allowing the application.

In this instance, the effect of the activity on the environment is considered to be less than minor and therefore no compensation for any adverse effects is required.

#### **Relevant Policy Statements, Plans or Proposed Plans (section 104(1)(b))**

Section 104(1)(b) of the Act sets out that when considering an application for resource consent, Council shall have regard to any relevant provisions of policy statements, or plans or proposed plans.

Having regard to the proposal, the proposed changes to the consent condition(s) will not require any greater consideration of the ODP objectives and policies of the relevant planning documents that were considered at the time the original consent was granted.

Council released the Decisions version of the proposed Urban and Services plan changes on 3 June 2020. As such, the relevant objectives and policies require consideration, namely those contained within the Light, Transport, and Sport and Active Recreation Zone chapters. Having regard to comments made previously, the proposal is considered to be entirely consistent with the policy direction of the abovementioned chapters.

The proposal will provide suitable artificial lighting, parking and landscaping solutions to enable the existing consented activities to continue to operate, while appropriately managing adverse effects on the amenity of the receiving environment. The development has also been designed to support the safety and security of people and property, and to maintain public pedestrian and traffic safety.

#### **Other Matters (section 104(1)(c))**

There are no other matters considered relevant to making an appropriate consideration of this application.

## **8 Part 2 Matters**

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The overarching intent of the purpose and principles of the Resource Management Act 1991 have been taken into consideration during the assessment of this application. Having regard to the proposed amendments, there are no apparent conflicts with the purpose and principles of the Act that have been identified.

## **9 Conclusions and Recommendations**

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**Recommendation 1** That pursuant to Sections 95A – 95F of the Act, this Section 127 application LU0639432.06 to change a condition of consent relating to LU01/830.01 issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:

- 1 The effects presented within this application are consistent with those considered within LU01/830.01 and therefore Section 127 is the appropriate mechanism to authorise the proposed changes.
- 2 It is considered that the adverse effects on the environment will be **less than minor** for the following reasons:
  - With the implementation of the landscaping plan no adverse effects on the environment arise from the identified areas of non-compliance as the proposal will contribute towards the amenity values of the immediate locality.
  - Councils Development Engineer, Bhupinder Gill, has reviewed the proposed parking and is satisfied that the proposed access, parking and manoeuvring, are considered to be sufficient.
  - The overall visual effects of the proposed carpark, and intensity and scale of the activity will not undermine existing character and amenity enjoyed within the locality.

- 2 No persons are considered adversely affected by the proposal for the same reason as noted in bullet point 2 above.
- 3 There are no special circumstances to warrant notification.

**Recommendation 2** **Having considered the application against the relevant provisions of the Act it is recommended that this Section 127 application LU0639432.06 to change a condition of consent relating to LU01/830.01 issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:**

- 1 The actual and potential effects of the activity are considered acceptable in this instance, as the receiving environment has sufficient capacity to accommodate the effects of the proposal without loss of existing levels of traffic safety and efficiency and character and amenity.
- 2 The proposal represents the efficient use of existing resources and will result in a number of positive effects.
- 3 The proposed amendments are considered consistent with the relevant objectives and policies of the Operative District Plan, Regional Policy Statement and Part 2 of the Act.
- 4 There are no other matters considered relevant to making an appropriate consideration of this application.



Alisa Neal, Consultant Planner (Barker & Associates)

10 August 2020

Date

I have reviewed this Report, visited the site, and agree with the findings and recommendations of Alisa Neal. Therefore Consent is granted as recommended above.



Alan Withy, Commissioner

11 August 2020

Date

## Decision: Change or Cancellation of Condition(s) of Consent Application - Section 127 of the Resource Management Act 1991

IN THE MATTER of the Resource Management Act 1991

and

IN THE MATTER of an application under Section 127 of the Resource Management Act 1991 by Whangarei District Council Parks and Recreation

### Application

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The existing Place of Assembly (The Cobham Oval Cricket Grounds) is consented for up to 675 people and includes approximately 1.8ha of land area as well as associated sports club facilities.

The Application seeks consent pursuant to Section 127 of the Resource Management Act 1991, to allow for a reduction in the number of carparks to allow for the upgrade and formalisation of the currently unsealed carpark at the Cobham Oval Cricket Grounds. A total of 217 car parking spaces will be provided on the site. No changes are proposed to the existing activity and associated buildings and sports clubs on the subject site, including their associated hours of operation. It is noted that the Okara Park rugby ground has since been redeveloped to include 184 onsite carparking spaces (see consent reference LU0639432.04), and the Cobham Oval Cricket Grounds carpark no longer forms the parking requirements for Okara Park. The applicant has demonstrated that no other existing consents that relate to activities on the site will be impacted by the proposed changes.

### Decision A – Section 37

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Council extends the timeframes by which to make a decision on this application for resource consent by 20 working days. The reason for this extension is to allow the applicant's agent to finalise a lighting plan, review draft conditions and to allow time for the decision to be signed off. The applicant has provided confirmation by way of email that this time extension is accepted.

### Decision B – Section 127

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The application was considered and determined under authority delegated to the Independent Commissioner, pursuant to Section 34A of the Resource Management Act 1991. The decision is that the conditions(s) of the resource consent LU0639432.04 have been amended as follows.

### Full Amended Conditions of Consent

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Pursuant to Section 108 of the Resource Management Act 1991 resource consent is granted subject to the following conditions:

### Amended Conditions of Consent

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#### General

That pursuant to Sections 104, 104B, 108 and 220 of the Resource Management Act 1991, Council grants consent subject to the following conditions:

1. That the development proceed in general accordance with the following documents:
  - the plans and supporting information submitted with the original application prepared by Planning Network Services Ltd; and
  - the amendments submitted with the s127 application on 13 October 2006, with regard to the location of the scoreboard, by Aubrey Gifford; and



- the amendments submitted with the s127 application on 13 May 2020 with regard to the upgrading of the carpark, by Whangarei District Council – Parks and Recreation, and the further information received on 15 June 2020, 6 July 2020 and 29 July 2020, including:
  - Location plan titled “Cobham Oval Car Park, Reference no. 12055, Sheet C01, Rev P2” prepared by Hawthorn Geddes and dated February 2020;
  - Site plan titled “Cobham Oval Car Park, Car park layout; Reference no. 12055, Sheet C04, Rev P1” prepared by Hawthorn Geddes and dated February 2020;
  - The planting plan by Whangarei District Council referenced WDC-JW-06/07/2020 and received on 6 July 2020;
  - The lighting design overview plan by Techlight, referenced “Cobham Oval Carpark, rev 4” dated 28 July 2020

subject to any amendments required by conditions of consent below;

2. The approved planting plan referred to in Condition (2) above shall be implemented during the next planting season following the completion of construction works, and maintained on an ongoing basis.

All other conditions of LU 01/830 shall remain unchanged.

## Reasons for the Decision

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Pursuant to section 113 of the Act the reasons for the decision are as follows:

**Determination 1 That pursuant to Sections 95A – 95F of the Act, this Section 127 application LU0639432.06 to change a condition of consent relating to LU01/830.01 issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:**

- 1 The effects presented within this application are consistent with those considered within LU01/830.01 and therefore Section 127 is the appropriate mechanism to authorise the proposed changes.
- 2 It is considered that the adverse effects on the environment will be **less than minor** for the following reasons:
  - With the implementation of the landscaping plan no adverse effects on the environment arise from the identified areas of non-compliance as the proposal will contribute towards the amenity values of the immediate locality.
  - Councils Development Engineer, Bhupinder Gill, has reviewed the proposed parking and is satisfied that the proposed access, parking and manoeuvring, are considered to be sufficient.
  - The overall visual effects of the proposed carpark, and intensity and scale of the activity will not undermine existing character and amenity enjoyed within the locality.
- 2 No persons are considered adversely affected by the proposal for the same reason as noted in bullet point 2 above.
- 3 There are no special circumstances to warrant notification.

**Determination 2 Having considered the application against the relevant provisions of the Act it is recommended that this Section 127 application LU0639432.06 to change a condition of consent relating to LU01/830.01 issued to Whangarei District Council be granted pursuant to Section 127 of the Act, for the following reasons:**

- 5 The actual and potential effects of the activity are considered acceptable in this instance, as the receiving environment has sufficient capacity to accommodate the effects of the proposal without loss of existing levels of traffic safety and efficiency and character and amenity.

- 6 The proposal represents the efficient use of existing resources and will result in a number of positive effects.
- 7 The proposed amendments are considered consistent with the relevant objectives and policies of the Operative District Plan, Regional Policy Statement and Part 2 of the Act.
- 8 There are no other matters considered relevant to making an appropriate consideration of this application.

### Advice Note

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- 1 Section 357A(3) of the Resource Management Act 1991 provides a right of objection to this decision. Objection must be in writing, setting out the reasons for the objection, delivered to Whangarei District Council within 15 working days after the decision has been notified to you. A fee may be payable to cover the costs of processing any objection.
- 2 The Team Leader RMA Approvals and Compliance shall be notified at least five (5) working days prior to activities commencing on the subject site.



Alisa Neal, Consultant Planner (Barker & Associates)

10 August 2020

Date

I have reviewed the above Report by Alisa Neal and her recommendations. I have visited the site, accept her findings and adopt her recommendations.

Therefore Consent is granted as above in accordance with the stipulated conditions above.



Alan Withy, Independent Commissioner

11 August 2020

Date



## 6.2 Local Government Funding Agency – 2024 Annual Meeting Matters

**Meeting:** Whangarei District Council  
**Date of meeting:** 24 October 2024  
**Reporting officer:** Delyse Henwood (Manager – Finance)

### 1 Purpose / Te Kaupapa

To establish Council's position on the matters being put forward for consideration at the Local Government Funding Agency (LGFA) Annual Meeting (AM) on Tuesday 19 November 2024.

### 2 Recommendations / Whakataunga

That the Council:

1. Notes the Local Government Funding Agency has advised that its Annual Meeting will be held on 19 November 2024 in Wellington (and virtually upon request).
2. Notes that General Manager Corporate / CFO Alan Adcock will attend the Annual Meeting in his role as Local Government Funding Agency Director, not as a representative of Council.
3. As a consequence of item 2 above, Council appoints Craig Stobo, Local Government Funding Agency Chair, as Council's proxy.
4. Agrees that the proxy votes in favour of the following proposals which require ordinary shareholders resolutions:

**LGFA Resolution 2: Election of Company Directors** (undertaken by way of a poll)

- a) To re-elect Alan Adcock as a non-Independent Director for an additional three-year term
- b) To re-elect Craig Stobo as an Independent Director for an additional three-year term
- c) To elect Elena Trout as an Independent Director for a three-year term.

**LGFA Resolution 3: Election of Nominating Local Authorities to the Shareholder's Council**

- a) To re-elect Auckland Council as a Nominating Local Authority to the Shareholders' Council
- b) To re-elect Wellington City Council as a Nominating Local Authority to the Shareholders' Council.

**LGFA Resolution 4: Directors' Remuneration**

To approve the following increases in Director fees payable, in each case with effect from 1 July 2024:

- a) In respect of the Director acting as chair of the Board of Directors, an increase of \$3,720 per annum, from \$124,000 per annum to \$127,720 per annum

- b) In respect of the Director acting as chair of the audit and risk committee, an increase of \$2,340 per annum, from \$78,000 per annum to \$80,340 per annum
- c) In respect of each of the other Directors acting as members of the audit and risk committee, an increase of \$2,190 per annum, from \$73,000 per annum to \$75,190 per annum
- d) In respect of each of the other directors, an increase of \$2,100 per annum, from \$70,000 per annum to \$72,100 per annum.

**LGFA Resolution 5: Changes to the Foundation Policies**

To approve the amendments to the Foundation Policies of the Company.

### 3 Background / Horopaki

The LGFA is a Council-controlled organisation (CCO), owned 20% by the Government and 80% by 30 local authorities. Whangarei District Council has an ownership stake of 3.3 %.

The LGFA was established to provide councils with improved access to cost-effective long-term debt. It is a registered financial institution regulated by the Reserve Bank. Total loans made to local government as at 30 June 2024 total approximately \$20.5 billion. Together, Auckland Council and Christchurch City Council have 30% of the LGFA's issued debt, with the remainder shared between the other councils.

#### LGFA Board Composition

The LGFA's Shareholder's Agreement (SHA) provides that the Board may comprise between five and seven directors, with no less than five independent directors.

Current board members are:

- Craig Stobo (Chair)
- Philip Cory-Wright
- David Rae
- Linda Robertson
- Alan Adcock, and
- Helen Robinson

Clause 3.3 of the SHA states that a Director must not hold office (without re-election) past the third annual meeting of the Company following the Director's appointment or three years, whichever is longer. A retiring Director shall be eligible for re-election.

#### Independent Directors

In accordance with clause 3.3 of the SHA, Craig Stobo retires by rotation and being eligible, offers himself for re-election as an Independent Director.

In accordance with clause 3.1 of the SHA, the number of directors is proposed to be increased to the maximum number of 7. The Shareholders' Council and LGFA Board agree to the nomination of a sixth independent Board member to meet the changing and increasing demands of the Board, particularly to meet the increased complexity and breadth of operation in lending to waters CCOs under the Local Water Done Well reforms.

A recruitment process was undertaken by a Nomination Panel made up of representatives from the LGFA Board and the LGFA Shareholders' Council. Elena Trout was identified as the preferred candidate for nomination.

#### Non-Independent Directors

Alan Adcock from Whangarei District Council was appointed as a non-independent director at the November 2021 AGM for a three-year term that expires at the November 2024 AGM.

In accordance with clause 3.3 of the SHA, Alan Adcock retires by rotation and offers himself for re-election as a non-independent director.

In accordance with clause 3.5 of the SHA, Kumaren Perumal has been nominated by Bay of Plenty Regional Council as a non-independent Director.

The Shareholders' Council considered the relevance of both nominees' skills and experience in the context of the relatively turbulent environment of the next three years of LGFA operation. After a formal process to consider where to place their recommendation, the Shareholders' Council recommends Alan Adcock for a second term on the Board.

*“Alan, who is current CFO at Whangarei District Council, has strong governance experience combining many years of local government executive leadership and CCO governance experience with an extensive commercial and banking background. His diversity of skills and experience mean he is well-placed to contribute effectively to the LGFA Board through the significant changes expected over the next few years.”*

Biographies are contained in Appendix 1 of Attachment 1, which is the Local Government Funding Agency Limited 'Notice of Annual Meeting'.

### **LGFA Shareholders' Council Composition**

Shareholder oversight is provided through a Shareholders' Council (SC). The members are Auckland Council, Christchurch City Council, Hamilton City Council, Bay of Plenty Regional Council, New Plymouth District Council, Tasman District Council, Tauranga City Council, Wellington City Council, and Western Bay of Plenty District Council as well as the NZ Government (with oversight through the Ministers of Local Government and Finance).

This year Auckland Council and Wellington City Council retire by rotation and offer themselves for re-election.

### **Directors' Remuneration**

Resolution 4 of the Annual Meeting, detailed in recommendation 4 of this agenda item seeks shareholders' approval for an increase in Directors' remuneration with effect from 1 July 2024.

The proposed fee increases for Directors (as set out in the notice of meeting) have been calculated based on a 3% increase, which is just below the CPI to June of 3.3% of the Board fees that were set at the November 2023 AM for 2023/24. The Shareholders' Council supports the annual CPI movement to maintain parity with market rates and avoid the requirement for more significant adjustments to director remuneration through periodic full market review. The next full market review for the LGFA board is proposed for the November 2025 AM.

### **Foundation Policies**

Resolution 5 of the Annual Meeting seeks approval of amendments made to LGFA Foundation Policies. These amendments are to:

**a) remove the “A” credit rating requirement noting instead that the higher borrowing limits are available to rated councils.**

To assess credit quality of borrowing councils LGFA relies upon the financial covenants and its own credit monitoring rather than the “A” rating required in the foundation policies. LGFA notes the “A” rating is subjective amongst rating agencies. This change would avoid doubt as to whether the covenants would apply to “A-” ratings, with some councils' ratings potentially moving lower as council debt increases over time in response to infrastructure investment requirements.

**b) Allow bespoke covenants up to 350% Net Debt:Total Revenue ratio for rated councils on a bespoke basis at the discretion of the Board.**

This proposal is to support high growth councils that may exceed covenants to provide growth infrastructure, or to provide short term emergency assistance with financing. The expectation of LGFA Board is that the bespoke higher covenants would not apply to more than 15-20% of total LGFA lending to councils. This ratio will be monitored by the shareholders' council with a view to such covenants not exceeding 20% of total Council lending by LGFA. A more detailed discussion of the Board's recommendation regarding delegation to provide bespoke covenants is provided in explanatory note 5 to the Notice of Annual Meeting.

The amended LGFA Foundation Policies with tracked changes is included as Attachment 3 of this agenda. The amended LGFA Foundation Policies with changes incorporated is included as Attachment 4.

## **4 Discussion / Whakawhiti kōrero**

Shareholders are entitled to attend and vote at the Annual Meeting (AM), with a proxy form for voting to be sent to LGFA at least 48 hours prior to the AM.

The following matters are being considered at the AM:

- To receive and consider the financial statements for the year ended 30 June 2024
- Election of Company Directors
- Election of Nominating Local Authorities to Shareholders' Council
- Directors' Remuneration
- Changes to Foundation Policies
- Questions and Comments from Shareholders
- General Business

Attachment 1 is the Local Government Funding Agency Limited 'Notice of Annual Meeting', which includes Explanatory Notes. Attachment 2 provides the Annual Meeting Agenda.

The associated 'Proxy Form' is included as Attachment 5.

The SHA provides that the role of the SC is to advise shareholders on certain matters, and that it shall:

- review and report to shareholders periodically on the performance of the company and the Board
- make recommendations to shareholders on the appointment, removal, re-election, replacement and remuneration of directors; and
- make recommendations to shareholders about any matters which require the approval of shareholders.

The SC has considered the matters listed above and has written to Shareholders (Attachment 6). It is recommended that Council follows the recommendations of the SC on all matters, therefore the recommendations included within this Council agenda are based on the SC advice.

### **4.1 Financial/budget considerations**

The LGFA Annual Meeting resolutions contained within this agenda have no direct impact on Whangarei District Council's financial position. Whangarei District Council's strong financial position is reflected in the Net Debt/Total Revenue of 92% at 30 June 2024, well below the LGFA's covenant of 285% (280% from 1 July 2025).

The delegation to the Board to approve bespoke covenants up to 350% is unlikely to increase what has already been determined to be an insignificant risk for Whangarei District Council. LGFA expects 5 councils to apply for the increased covenants, with the total debt of those respective councils equating to approximately 15% of the LGFA lending book. No New Zealand Council has ever defaulted.

## **5 Significance and engagement / Te Hira me te Arawhiti**

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via agenda publication on the website.

## **6 Attachments / Ngā Tāpiritanga**

1. Local Government Funding Agency – Notice of Annual Meeting
2. Local Government Funding Agency – Annual Meeting Agenda 2024
3. Local Government Funding Agency – Amended Foundation Policies (tracked changes)
4. Local Government Funding Agency – Amended Foundation Policies
5. Local Government Funding Agency – Annual Meeting Proxy Form
6. Letter – LGFA Shareholders' Council Recommendations





## NEW ZEALAND LOCAL GOVERNMENT FUNDING AGENCY LIMITED NOTICE OF ANNUAL MEETING

Notice is given that the 2024 annual meeting of Shareholders of New Zealand Local Government Funding Agency Limited ("Company" or "LGFA") will be held at the **Bolton Hotel, 11 Bolton Street, Wellington** on **19 November 2024** commencing at **2:00pm**.

For those Shareholders unable to attend in person, you can attend via Teams. **Jane Phelan will provide the Teams details upon request at [jane.phelan@lgfa.co.nz](mailto:jane.phelan@lgfa.co.nz).**

### BUSINESS

1. **FINANCIAL STATEMENTS AND REPORTS:** To receive and consider the financial statements of the Company for the year ended 30 June 2024, together with the Directors' and auditor's reports to Shareholders.
2. **ELECTION OF COMPANY DIRECTORS**

In accordance with clause 3.3 of the Shareholders' Agreement ("SHA"):

- (a) **Alan Adcock** retires by rotation and being eligible, offers himself for re-election as a non-Independent Director; and
- (b) **Craig Stobo** retires by rotation and being eligible, offers himself for re-election as an Independent Director.

In addition, and in accordance with clause 3.5 of the SHA:

- (a) **Kumaren Perumal** has been nominated by Bay of Plenty Regional Council as a non-Independent Director; and
- (b) **Elena Trout** has been nominated by Hamilton City Council as an Independent Director.

Clause 3.1 of the SHA states that the number of Directors serving on the Board shall not at any time be more than seven nor less than five, and no less than five of those Directors shall be Independent Directors. There are currently six Directors (five of whom are Independent Directors). With two Directors retiring and seeking re-election (one being an Independent Director and one being a non-Independent Director), there are up to three vacant Board positions available. Of those positions, at least one must be filled by an Independent Director.

Accordingly, there will be a poll whereby up to three of the candidates may be elected as a Director. The following resolutions will be put to the meeting. To:

- (a) Re-elect **Alan Adcock** as a non-Independent Director, by way of Ordinary Resolution;
- (b) Re-elect **Craig Stobo** as an Independent Director, by way of Ordinary Resolution;

- (c) Elect **Kumaren Perumal** as a non-Independent Director, by way of Ordinary Resolution; and
- (d) Elect **Elena Trout** as an Independent Director, by way of Ordinary Resolution

The election procedure is specified in the Explanatory Notes. In addition, brief biographies for each of the persons standing for the position of Director are included at Appendix One to this notice of meeting.

(See Explanatory Note 2)

### 3. ELECTION OF NOMINATING LOCAL AUTHORITIES TO THE SHAREHOLDERS' COUNCIL

In accordance with clause 4.6 of the SHA, **Auckland Council** and **Wellington City Council** retire as Nominating Local Authorities by rotation. **Auckland Council** and **Wellington City Council** being eligible, each offer themselves for re-election as a Nominating Local Authority.

Accordingly, to:

- (a) re-elect **Auckland Council** as a Nominating Local Authority, by way of Ordinary Resolution; and
- (b) re-elect **Wellington City Council** as a Nominating Local Authority, by way of Ordinary Resolution.

(See Explanatory Note 3)

### 4. DIRECTORS' REMUNERATION

In accordance with clause 3.6 of the SHA, to approve, by way of Ordinary Resolution, each of the following increases in Directors' fees payable, in each case with effect from 1 July 2024:

- (a) in respect of the Director acting as chair of the Board, an increase of \$3,720 per annum, from \$124,000 per annum to \$127,720 per annum;
- (b) in respect of the Director acting as chair of the audit and risk committee, an increase of \$2,340 per annum, from \$78,000 per annum to \$80,340 per annum;
- (c) in respect of each of the other Directors acting as members of the audit and risk committee, an increase of \$2,190 per annum, from \$73,000 per annum to \$75,190 per annum; and
- (d) in respect of each of the other Directors, an increase of \$2,100 per annum, from \$70,000 per annum to \$72,100 per annum.

(See Explanatory Note 4)



5. **CHANGES TO FOUNDATION POLICIES**

In accordance with clause 5.1(c) of the SHA, to approve, by way of Ordinary Resolution, the amendments to the foundation policies of the Company ("**Foundation Policies**") as explained in Explanatory Note 5.

6. **QUESTIONS AND COMMENTS FROM SHAREHOLDERS**

Opportunity for Shareholders to comment or question Directors, Shareholder Council or management.

7. **GENERAL BUSINESS**

To consider such other business as may properly be raised at the meeting.

Please refer to the Explanatory Notes that accompany this notice of meeting.

By order of the Board:



**Craig Stobo, LGFA Board Chair**

20 September 2024

**ORDINARY RESOLUTIONS:** *Ordinary resolutions are resolutions approved by a simple majority of more than 50% of the votes of the Shareholders entitled to vote and voting on the question at the annual meeting.*

**SHAREHOLDERS ENTITLED TO ATTEND AND VOTE:** *Pursuant to section 125 of the Companies Act 1993, for the purposes of voting at the annual meeting, those registered shareholders of the Company as at 9.00am on Wednesday 19 November 2024 shall be entitled to exercise the right to vote at the meeting.*

**CAPITALISED TERMS:** *Unless otherwise defined in this notice, capitalised terms have the meanings given to them in the Shareholders' Agreement dated 7 December 2011 (as amended and restated on 23 November 2021).*

## EXPLANATORY NOTES

### EXPLANATORY NOTE 1 - PROXY VOTE

A Shareholder entitled to attend and vote at the meeting is entitled to appoint a proxy to attend and vote instead of the Shareholder. The proxy need not be a Shareholder. To be effective, a copy of the proxy form must be received by the Company at **Level 11, City Chambers, 142 Featherston Street, Wellington 6145** or via email to [jane.phelan@lgfa.co.nz](mailto:jane.phelan@lgfa.co.nz) not later than 48 hours before the start of the meeting.

A body corporate may appoint a person to attend the meeting as its representative in the same manner as that in which it could appoint a proxy.

### EXPLANATORY NOTE 2 - ELECTION OF DIRECTORS

Clause 3.3 of the SHA was amended by Ordinary Resolution at the 2021 annual meeting of Shareholders to state that a Director must not hold office (without re-election) past the third annual meeting of the Company following the Director's appointment or three years, whichever is longer. A retiring Director shall be eligible for re-election.

In this case, **Craig Stobo**, who was re-elected on 23 November 2021, and **Alan Adcock**, who was elected on 23 November 2021, shall retire at this year's annual meeting.

**Alan Adcock** being eligible, offers himself for re-election as a non-Independent Director.

**Craig Stobo** being eligible, offers himself for re-election as an Independent Director.

**Kumaren Perumal** offers himself for election as a non-Independent Director.

**Elena Trout** offers herself for election as an Independent Director.

In accordance with the Ordinary Resolution passed by Shareholders at the 2021 annual meeting of Shareholders, and clause 3.1 of the SHA, the size of the Board shall be between five and seven Directors, including no less than five Independent Directors. The Board currently consists of six Directors (being Alan Adcock (non-Independent Director), Philip Cory-Wright (Independent Director), David Rae (Independent Director), Linda Robertson (Independent Director), Helen Robinson (Independent Director) and Craig Stobo (Independent Director)). As Craig Stobo and Alan Adcock are retiring at this meeting, the Shareholders will need to appoint at least one Independent Director and up to three Directors in total to the Board.

The vacant positions on the Board will be filled by those candidates whose appointment is approved by an Ordinary Resolution. However, given there are more candidates than the three available Director positions, if each of the four candidate's appointments is approved by an Ordinary Resolution, the three candidates who receive the highest number of votes in favour of their appointment will be appointed as Directors. If none of the candidates' appointments are approved by an Ordinary Resolution, or neither of the Independent Director candidates is approved by an Ordinary Resolution, the Board will be inquorate (as it will have too few Directors and/or too few Independent Directors). In that case, a further meeting of Shareholders will need to be called to either amend the Board composition provisions in the SHA or to fill the relevant vacancy or vacancies.

**The following biographies have been provided by the candidates and are attached at Appendix One to this notice of meeting:**

- **Alan Adcock**
- **Craig Stobo**
- **Kumaren Perumal**
- **Elena Trout**

### *Director election process*

The election process for Directors will be undertaken by way of a poll, with voting able to be undertaken by way of in person voting (including by way of proxy).

Shareholders may vote for each candidate, however, as noted above, where the appointment of all four candidates is approved by an Ordinary Resolution, the three candidates who receive the highest number of votes in favour of their appointment will be appointed as Directors.

### **EXPLANATORY NOTE 3 - ELECTION OF NOMINATING LOCAL AUTHORITIES TO THE SHAREHOLDERS' COUNCIL**

Clause 4.3 of the SHA provides that a Principal Shareholder may be appointed or removed as a nominator to the Shareholders' Council ("**Nominating Local Authority**") at any time by an Ordinary Resolution, provided that no more than nine Nominating Local Authorities may be so appointed. Each Nominating Local Authority, and the New Zealand Government (for so long as it is a Shareholder), may appoint one member of the Shareholders' Council, and remove and replace any member so appointed, in accordance with clause 4.4 of the SHA.

Clause 4.6 of the SHA provides that, beginning at, and including, the annual meeting for 2013, the Shareholders shall ensure that two Nominating Local Authorities retire from office at the annual meeting of the Company in each year. The Nominating Local Authorities to retire shall be those who have been longest in office since their last election, and if two or more of those Nominating Local Authorities were last elected on the same day, the Nominating Local Authority to retire shall (unless they otherwise agree among themselves) be determined by lot. A retiring Nominating Local Authority is eligible for re-election.

In this case, Auckland Council, having been re-elected as a Nominating Local Authority on 21 November 2019, and Wellington City Council, having been re-elected as a Nominating Local Authority on 19 November 2020, are the Nominating Local Authorities who have been longest in office since their last election (Tasman District Council having been re-elected on 19 November 2020, Christchurch City Council having been re-elected on 23 November 2021, New Plymouth District Council having been elected on 23 November 2021, Bay of Plenty Regional Council having been re-elected on 23 November 2022, Hamilton City Council having been re-elected on 23 November 2022, Western Bay of Plenty District Council having been re-elected on 23 November 2023 and Tauranga City Council having been re-elected on 23 November 2023 ). Accordingly, being the longest in office since their last election, **Auckland Council** and **Wellington City Council** shall retire by rotation at this annual meeting.

The Shareholders' Council is comprised of between five and ten members. The New Zealand Government can appoint a member and the remaining members are nominated by up to nine Nominating Local Authorities. Following the retirement of **Auckland Council** and **Wellington City Council** there are currently two positions available.

**Auckland Council** offers themselves for re-election as a Nominating Local Authority.

**Wellington City Council** offers themselves for re-election as a Nominating Local Authority.

### **EXPLANATORY NOTE 4 – DIRECTORS' REMUNERATION**

This resolution seeks Shareholders' approval for an increase in Directors' remuneration with effect from 1 July 2024. The proposed fee increases for Directors (as set out in the notice of meeting) have been calculated based on an increase of 3.3% which is the annual increase in the headline Consumer Price Index (CPI) for the year ending June 2024.

The proposed fee increases recognise the change in the CPI over the past 12 months, the increased Director duties relating to Water Reform and greater size and complexity of the LGFA business. A CPI adjustment will also reduce the size of any potential Director fee adjustment following the next external independent review that is likely to take place in 2025.

The Director remuneration was last adjusted in November 2023 with effect from 1 July 2023.

## **EXPLANATORY NOTE 5 – CHANGES TO FOUNDATION POLICIES**

The Foundation Policies of the Company are set out in Schedule 1 to the SHA. Clause 5.1(c) of the SHA provides that neither the Board nor any Shareholder shall take or permit any action to cause any alteration to any of the Foundation Policies unless it is approved by Ordinary Resolution of the Company's shareholders (or, if required by law or clause 5.1(k), a Special Resolution). The Company has confirmed that none of the changes to the Foundation Policies are required to be approved by Special Resolution.

The Board recommends that Shareholders approve the proposed changes to the Foundation Policies. The changes will provide the Board with the authority to grant a bespoke Net Debt/Total Revenue covenant above 285% (or 280% from 1 July 2025), but no more than 350%. The changes will assist both high growth councils and any councils who might require short term emergency assistance with financing.

LGFA covenants are the same for councils, regardless of their future growth trajectories. A small number of high growth councils are facing constraints on their current or future borrowing because of the current level of the Net Debt/Total Revenue Foundation Policy covenant.

Increasing covenants for growth councils allows for councils that can support more debt to do so. Councils can currently use the Infrastructure Funding and Financing Act 2020 ("IFF") to establish a special purpose vehicle to borrow to fund new infrastructure, with the debt being serviced by a levy on property owners who benefit from the new infrastructure. Using an IFF structure is more costly and time consuming for councils than borrowing from LGFA.

Furthermore, a council might need to urgently undertake unplanned borrowing (e.g. following a natural disaster). This additional borrowing could potentially exceed the current Net Debt / Total Revenue Foundation Policy covenant of 285% (or 280% from 1 July 2025). The SHA would require an Ordinary Resolution of Shareholders to approve a council to borrow above that limit. The Shareholder approval process could take some time to pass, so providing a delegation to the Board seems appropriate.

To support the Government's National Policy Statement on Urban Development 2020 (updated in May 2022) published by the Ministry for the Environment ("NPS"), LGFA will consider applications from Tier 1 and Tier 2 local authorities where the increase in borrowing capacity will be used to invest in growth infrastructure.

There were eighteen councils considered as Tier 1 local authorities under the NPS. These include four regional councils who are unlikely to be approved if they apply, as they cover a wide geographic area with some overlap with territorial councils. The remaining fourteen councils are Auckland, Hamilton City, Waikato District, Waipa District, Tauranga City, Western Bay of Plenty District, Wellington City, Porirua City, Hutt City, Upper Hutt City, Kapiti Coast District, Christchurch City, Selwyn District and Waimakariri District Councils.

There were sixteen councils considered as Tier 2 local authorities under the NPS. These include six regional councils who are unlikely to be approved if they apply, as they cover a wide geographic area with some overlap with territorial councils. The remaining ten councils are Whangarei District, Rotorua District, New Plymouth District, Napier City, Hastings District, Palmerston North City, Nelson City, Tasman District, Queenstown Lakes District and Dunedin City Councils.

Based on councils 2024-2034 LTPs, LGFA would expect only five Tier 1 and 2 councils to make an application for a bespoke net debt to revenue ratio. However, it is possible that additional applications could be received in the future depending on changes in growth infrastructure requirements.

The five councils expected to apply are approximately 15% of the LGFA lending book. While their borrowing is expected to increase, the total loan book will also increase and be more diversified if water CCOs are established and borrow from LGFA.

As a council's borrowing grows, it is expected that their credit rating could be lowered. LGFA is comfortable with additional borrowing by a high growth council given the security that LGFA has over a council borrowing. Investment in growth infrastructure will generate additional development contributions, financial contributions and an increase in rating units which will support the increase in debt.

It is also proposed to remove the words "of A equivalent or higher". This will mean councils are required only to have a long-term credit rating to benefit from the Foundation policy covenant. An external credit rating is important, but a credit rating agency's methodology can change over time, and there can be differences in the rating outcomes for a rated entity depending upon which credit rating agency is used. The current term "of A equivalent or higher" is also open to ambiguity as to whether this means A+, A or A-. LGFA limits risk through both the financial covenants and its own due diligence on councils.

A tracked change version of the proposed amendments to the Foundation Policies is attached at Appendix Two to this notice of meeting. Following the meeting and assuming the amendments to the Foundation Policies are approved by Ordinary Resolution, LGFA intends to record the approved amendments in an amendment and restatement of the SHA.

## **APPENDIX ONE: DIRECTOR BIOGRAPHIES**

### **ALAN ADCOCK – BIOGRAPHY**

My working career has revolved around four broad areas (accounting, financial services, IT and local government) in both private and public sectors.

After a post-graduate spell in a Big 5 accounting firm, I joined the fledgling IT sector as personal computers gained a footing in the market. Following this I moved to the financial services sector at National Mutual, with my last role being Chief Manager Auckland before their merger with AXA. At that point I moved to the UK, providing strategic consulting services before joining Credit Suisse First Boston to provide accounting advice to their global IT divisions.

Returning to NZ in 2000, I joined BNZ, with my last role there heading the Corporate Management function, where my primary responsibilities were liaison with the BNZ Board, management of the MD's office and corporate affairs.

My last move was back to my hometown in 2006, when I joined Whangarei District Council. Virtually all of my time there has seen me leading the corporate functions; with core responsibilities including the roles of CFO and CIO.

My tertiary education provided a solid base for my career; with my first degree, a BCom from Auckland University having an emphasis on accounting, management studies and commercial law. While in the UK I completed an MBA (with Distinction) from the City University of London Business School focusing on corporate finance and strategy.

I offer a broad range of skills and experience that are relevant to a governance role with LGFA:

- My involvement with LGFA began in its initial planning stage, as a representative of the ‘tight nine’ councils that worked together to turn the concept into reality.
- I was an inaugural member of the Shareholders’ Council.
- In 2014 I was elected to the Chair’s role; being re-elected unopposed each year until my appointment to the Board in 2021.
- Specific governance experience including:
  - Board liaison at BNZ
  - Trustee for two Northland Cricket Trusts – Facilities and Player Development
  - Director of Northland Waste – a profitable CCTO run as a Public/Private partnership operating the largest landfill in Northland and a major transfer station/recycling facility
  - Seven years working closely with the LGFA Board as Chair of the Shareholder’s Council
  - Three years as a Non-Independent Director of LGFA
- Recognised expertise in managing complex IT issues, being ranked #30 in the NZ CIO Awards in 2018 for my work leading the first NZ local government transition to a full cloud environment in 2017.
- Managing IT risks, particularly cyber-security, is an important part of my current role.
- Implementing a financial strategy that saw WDC move from an initial AA- credit rating to AA+ over 3 LTP cycles.
- Strong networks across the local government sector.
- Executive roles in large financial institutions, including membership of committees managing risk, credit and pricing.

I have demonstrated strong commitment and support for LGFA since its inception, attending every scheduled meeting of the Shareholders’ Council or Board since the company was formed in 2011. Over this time, I have taken a proactive role to ensure LGFA has met its primary objective, to benefit local communities through delivering efficient financing for local government, while also safeguarding the interests of our wider stakeholders.

I would welcome your support to continue to serve our Shareholders through my re-election to the Board as we navigate the next stage of our evolution.

## **CRAIG STOBO – BIOGRAPHY**

### **Education**

Craig Stobo was educated in New Zealand at Waitaki Boys High School (Milner Prize); Otago University (BA Hons First Class in Economics); and at Wharton Business School, University of Pennsylvania (Advanced Management Programme).

### **Corporate Career**

He has worked as a diplomat for the NZ and Australian Governments; as an economist for DFC/Zealcorp; as economist and an interest rates products manager for Bankers Trust NZ; and also as CEO and Executive Vice President for BT Funds Management NZ Ltd until 2004 after leading its establishment in 1992.

### **Independent Directorships**

Craig is the Chair of the Financial Markets Authority, NZX-listed NZ Windfarms Ltd, and the Local Government Funding Agency. His prior company Chair roles include NZX- listed companies Precinct Properties Ltd and Fliway Group Ltd; and AIG Insurance New Zealand.

### **Private Company Equity Interests and Directorships**

These currently include global equity investor Elevation Capital Management; national investment advisory firm Saturn Portfolio Management; fund administrator Appello Services Ltd; oyster farmer and exporter Biomarine Ltd; and specialist Bannockburn grape grower Legend Terrace.

#### Pro Bono Work

He is an Otago University Business School Taumata, leading the inception of its inaugural Tourism Policy School annual conference in Queenstown in March 2019 and its inaugural Assembly of Investment Chairs in Auckland in November 2019; chairs the Waitaki Boys High School Foundation which manages an endowment fund for the school; and is a committee member of the St Marys Bay Association.

#### Current Memberships

He is an Associate Member of CFA Society New Zealand; is an active member of the NZ Initiative; and is a Chartered Fellow of the NZ Institute of Directors.

### **KUMAREN PERUMAL – BIOGRAPHY**

I am a senior finance professional with 24 years of experience in both the private and public sectors across New Zealand and South Africa.

Like many finance professionals my early career began in the audit profession in the private sector enabling me to gain exposure to a wide range of industries and sectors for small and large businesses. I then transitioned to public sector auditing and worked for the Office of the Auditor-General South Africa managing attest and information systems audits. On emigrating to New Zealand in 2006 I joined Audit New Zealand's team as an Audit Manager responsible for audit engagements across a variety of public sectors including Local Government.

I joined Local Government in 2010 and held key management roles across two district councils and a regional council advising Executive Management Teams and Councillors.

Currently the Chief Financial Officer at Bay of Plenty Regional Council, I have a proven track record in strategic financial management, governance, and treasury operations. I have successfully led the transition to digital financial reporting platforms and managed critical planning processes, including annual and long-term financial planning.

My previous roles required me to oversee a broad range of functions, including financial management, IT, risk management, procurement and business improvement. I led transformational projects in Local Government that have contributed to enhanced organisational efficiency and effectiveness. Throughout these roles I have developed robust client and stakeholder relationships which I believe are key to success in both operational and governance settings.

I hold qualifications as a Chartered Accountant (CA ANZ), a Certified Information Systems Auditor (CISA), member of the New Zealand Institute of Directors and am committed to professional development and mentoring.

I am known for my strategic acumen, diverse thinking, innovative mindset, and strong interpersonal skills. I am dedicated to fostering a culture of accountability and excellence. These qualities, in addition to my ability to navigate complex financial landscapes, make me a strong candidate for the Non-Independent Director role at the LGFA.

I seek the support of shareholders for appointment to this role.

**ELENA TROUT - BIOGRAPHY**

Elena Trout is a management consultant and experienced company director, board Chair, company executive and professional civil engineer, who has held a number of leadership positions in the transport, infrastructure and energy sectors.

She has more than 30 years of experience in the planning, development and implementation of large engineering and technical projects and has been involved in a number of high-profile and nationally significant socio-economic infrastructure projects.

Elena has a very good understanding of the governmental context and ethos, having acquired significant experience as an independent Chair and advisor to central and local government, reporting to Ministers and Councils, including reviewing the resilience of national, large-scale public infrastructure. This includes appointments relating to being an Independent Assessor of the Crown - Council financial agreements, Chair of an Independent Government Inquiry, member of External Governance Groups overseeing public investments, and Chair of Section 17A reviews, in accordance with the Local Government Act.

She is experienced in the governance of utilities and is a current director of Contact Energy, one of the largest, publicly listed, generating and electricity companies in New Zealand, with a mix of geothermal, hydro and thermal assets and also a gas supply business.

Her former directorships also include the Electricity Authority and Transpower New Zealand Ltd.

Elena would bring a diversity of background to the LGFA board, being a Distinguished Fellow and past President of Engineering New Zealand.

**APPENDIX TWO: FORM OF AMENDED FOUNDATION POLICIES**

**Attached in separate document**



# Agenda

## Annual Meeting

19 November 2024

The Bolton Hotel, Wellington

2:00pm – 3:00pm

Microsoft Teams details upon request from [jane.phelan@lgfa.co.nz](mailto:jane.phelan@lgfa.co.nz)

|   | Agenda Item                                                       | Leading Discussion |
|---|-------------------------------------------------------------------|--------------------|
|   | Afternoon Tea on arrival                                          | All                |
|   | Introduction from Chair                                           | Craig Stobo        |
|   | Quorum                                                            | Craig Stobo        |
| 1 | Financial Statements and Reports                                  | Mark Butcher       |
| 2 | Election of Company Directors                                     | Kathryn Sharplin   |
| 3 | Election of Nominating Local Authorities to Shareholders' Council | Craig Stobo        |
| 4 | Remuneration of Directors                                         | Craig Stobo        |
| 5 | Changes to Foundation Policies                                    | Mark Butcher       |
| 6 | Questions and Comments from Shareholders                          | Craig Stobo        |
| 7 | General Business                                                  | Craig Stobo        |



**SCHEDULE 1**  
**Foundation Policies**  
(Clause 5.1 of the Shareholders' Agreement)

These foundation policies may only be changed by a resolution of shareholders in accordance with clause 5.1 of the Shareholders' Agreement

**Credit Risk**

***Lending Policy***

All Local Authorities that borrow from the Company will:

- Provide debenture security in relation to their borrowing from the Company and related obligations, and (if relevant), equity commitment liabilities to the Company and (if relevant) guarantee liabilities to a security trustee approved for the Company's creditors.
- Issue securities (bonds / FRNs / CP) to the Company and/or enter into facility arrangements with the Company.
- Comply with their own internal borrowing policies.
- Comply with the financial covenants outlined in the following table, provided that:
  - ~~Unrated~~ Local Authorities ~~without a long-term credit rating or Local Authorities with a long-term credit rating lower than 'A' equivalent~~ can have bespoke financial covenants that exceed the:
    - Lending policy covenants outlined in the following table with the approval of the Board;
    - Foundation policy covenants outlined in the following table with the approval of an Ordinary Resolution.
  - Local Authorities with a long-term credit rating ~~of 'A' equivalent or higher:~~
    - will not be required to comply with the lending policy covenants in the following table; and
    - ~~can have bespoke financial covenants that exceed the foundation policy covenants outlined in the following table:~~
      - ~~with the approval of an Ordinary Resolution; and or~~
      - ~~in respect of the Net Debt / Total Revenue covenant:~~
        - ~~with the approval of the Board, can have a bespoke Net Debt / Total Revenue covenant of up to 350%; or~~
        - ~~until the financial year ending 30 June 2026, in any event,~~ will not be required to comply with the Net Debt / Total Revenue foundation policy covenant outlined in the following table ~~until the financial year ending 30 June 2026~~. Until that date, such Local Authority must comply with the Net Debt / Total Revenue

covenant set out in the table entitled "Alternative Net Debt / Total Revenue Covenant" below.

- Any Board or Ordinary Resolution approval of bespoke financial covenants will only be provided after a robust credit analysis and any approval must also include bespoke reporting and monitoring arrangements.
- If the principal amount of a Local Authority's borrowings, or the Company's commitment under a facility agreement with a Local Authority, is at any time greater than NZD 20 million, be a party to a deed of guarantee and an equity commitment deed (in each case in a form set by the Company).

| Financial covenant                 | Lending policy covenants | Foundation policy covenants |
|------------------------------------|--------------------------|-----------------------------|
| Net Debt / Total Revenue           | <175%                    | <280%                       |
| Net Interest / Total Revenue       | <20%                     | <20%                        |
| Net Interest / Annual Rates Income | <25%                     | <30%                        |
| Liquidity                          | >110%                    | >110%                       |

| Alternative Net Debt / Total Revenue Covenant |                          |
|-----------------------------------------------|--------------------------|
| Financial Year ending                         | Net Debt / Total Revenue |
| 30 June 2020                                  | <250%                    |
| 30 June 2021                                  | <300%                    |
| 30 June 2022                                  | <300%                    |
| 30 June 2023                                  | <295%                    |
| 30 June 2024                                  | <290%                    |
| 30 June 2025                                  | <285%                    |

*Total Revenue is defined as cash earnings from rates, grants and subsidies, user charges, interest, dividends, financial and other revenue and excludes non government capital contributions (e.g. developer contributions and vested assets).*

*Net debt is defined as total debt less liquid financial assets and investments.*

*Liquidity is defined as external debt plus committed loan facilities plus liquid investments divided by external debt.*

*Net Interest is defined as the amount equal to all interest and financing costs less interest income for the relevant period.*

*Annual Rates Income is defined as the amount equal to the total revenue from any funding mechanism authorised by the Local Government (Rating) Act 2002 together with any revenue received from other local authorities for services provided (and for which the other local authorities rate).*

*Financial covenants are measured on Council only basis and not consolidated group basis, unless requested by a Local Authority and approved by the Board.*

Auckland Council will be limited to a maximum of 40% of the Company's total Local Authority (including CCO) assets.

Subject to implementation of any amendments or other actions considered necessary, advisable or expedient by the Board and the approval of the Board in relation to the relevant CCO (as defined below) (which may be a council-controlled trading organisation, as defined in the Local Government Act), an approved CCO may borrow from the Company provided that:

- The CCO is a "council-controlled organisation" as defined in section 6 of the Local Government Act, where the CCO is a company in which equity securities carrying at least 51% or more of the voting rights at a meeting of the shareholders of the CCO are held or

controlled, directly or indirectly, by one or more Local Authorities (respectively, a "CCO" and each such Local Authority being a "CCO Shareholder");

- Each CCO Shareholder provides a guarantee in respect of the CCO in favour of the Company and/or there is sufficient uncalled capital in respect of the CCO to meet the financial obligations of the CCO;
- Each CCO Shareholder provides equity commitment liabilities to the Company, guarantees liabilities to a security trustee approved for the Company's creditors, and provides debenture security for its equity commitments to the Company and guarantee liabilities to the security trustee;
- Each CCO Shareholder complies with Lending policy financial covenants, Foundation policy financial covenants or other financial covenants required by the Board (if any) ~~and, in the case of a CCO Shareholder with a long-term credit rating of 'A' equivalent or higher, until the financial year ending 30 June 2026, the Net Debt / Total Revenue covenant in the table entitled "Alternative Net Debt / Total Revenue Covenant" above.~~
- The CCO complies with any covenants required by the Board; and
- If required by the Board, the CCO will grant security in favour of the Company (which may be subject to any intercreditor arrangements acceptable to the Board).

Where the Company agrees to provide funding to the CCO, it must within 90 days of receiving annual financial covenant reporting from a CCO Shareholder (in its capacity as a borrower) report to the Shareholders' Council, holders of ordinary shares in the Company and any Local Authority guarantors of the Company's liabilities as to whether that CCO Shareholder has complied with its financial covenants on an individual and consolidated group basis.

Notwithstanding the definition of "CCO" set out above, the Board may not approve a CCO to borrow from the Company unless 100% of the equity securities carrying voting rights at a meeting of shareholders of the CCO are held or controlled, directly or indirectly, by one or more Local Authorities and the Crown (if applicable).



**SCHEDULE 1**  
**Foundation Policies**  
(Clause 5.1 of the Shareholders' Agreement)

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**Credit Risk**

***Lending Policy***

All Local Authorities that borrow from the Company will:

- Provide debenture security in relation to their borrowing from the Company and related obligations, and (if relevant), equity commitment liabilities to the Company and (if relevant) guarantee liabilities to a security trustee approved for the Company's creditors.
- Issue securities (bonds / FRNs / CP) to the Company and/or enter into facility arrangements with the Company.
- Comply with their own internal borrowing policies.
- Comply with the financial covenants outlined in the following table, provided that:
  - Local Authorities without a long-term credit rating can have bespoke financial covenants that exceed the:
    - Lending policy covenants outlined in the following table with the approval of the Board;
    - Foundation policy covenants outlined in the following table with the approval of an Ordinary Resolution.
  - Local Authorities with a long-term credit rating:
    - will not be required to comply with the lending policy covenants in the following table; and
    - can have bespoke financial covenants that exceed the foundation policy covenants outlined in the following table:
      - with the approval of an Ordinary Resolution; or
      - in respect of the Net Debt / Total Revenue covenant:
        - with the approval of the Board, can have a bespoke Net Debt / Total Revenue covenant of up to 350%; or
        - until the financial year ending 30 June 2026, will not be required to comply with the Net Debt / Total Revenue foundation policy covenant outlined in the following table. Until that date, such Local Authority must comply with the Net Debt / Total Revenue covenant set out in the table entitled "Alternative Net Debt / Total Revenue Covenant" below.

- Any Board or Ordinary Resolution approval of bespoke financial covenants will only be provided after a robust credit analysis and any approval must also include bespoke reporting and monitoring arrangements.
- If the principal amount of a Local Authority's borrowings, or the Company's commitment under a facility agreement with a Local Authority, is at any time greater than NZD 20 million, be a party to a deed of guarantee and an equity commitment deed (in each case in a form set by the Company).

| Financial covenant                 | Lending policy covenants | Foundation policy covenants |
|------------------------------------|--------------------------|-----------------------------|
| Net Debt / Total Revenue           | <175%                    | <280%                       |
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| Alternative Net Debt / Total Revenue Covenant |                          |
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| 30 June 2025                                  | <285%                    |

*Total Revenue is defined as cash earnings from rates, grants and subsidies, user charges, interest, dividends, financial and other revenue and excludes non government capital contributions (e.g. developer contributions and vested assets).*

*Net debt is defined as total debt less liquid financial assets and investments.*

*Liquidity is defined as external debt plus committed loan facilities plus liquid investments divided by external debt.*

*Net Interest is defined as the amount equal to all interest and financing costs less interest income for the relevant period.*

*Annual Rates Income is defined as the amount equal to the total revenue from any funding mechanism authorised by the Local Government (Rating) Act 2002 together with any revenue received from other local authorities for services provided (and for which the other local authorities rate).*

*Financial covenants are measured on Council only basis and not consolidated group basis, unless requested by a Local Authority and approved by the Board.*

Auckland Council will be limited to a maximum of 40% of the Company's total Local Authority (including CCO) assets.

Subject to implementation of any amendments or other actions considered necessary, advisable or expedient by the Board and the approval of the Board in relation to the relevant CCO (as defined below) (which may be a council-controlled trading organisation, as defined in the Local Government Act), an approved CCO may borrow from the Company provided that:

- The CCO is a "council-controlled organisation" as defined in section 6 of the Local Government Act, where the CCO is a company in which equity securities carrying at least 51% or more of the voting rights at a meeting of the shareholders of the CCO are held or controlled, directly or indirectly, by one or more Local Authorities (respectively, a "CCO" and each such Local Authority being a "CCO Shareholder");



- Each CCO Shareholder provides a guarantee in respect of the CCO in favour of the Company and/or there is sufficient uncalled capital in respect of the CCO to meet the financial obligations of the CCO;
- Each CCO Shareholder provides equity commitment liabilities to the Company, guarantees liabilities to a security trustee approved for the Company's creditors, and provides debenture security for its equity commitments to the Company and guarantee liabilities to the security trustee;
- Each CCO Shareholder complies with Lending policy financial covenants, Foundation policy financial covenants or other financial covenants required by the Board (if any).
- The CCO complies with any covenants required by the Board; and
- If required by the Board, the CCO will grant security in favour of the Company (which may be subject to any intercreditor arrangements acceptable to the Board).

Where the Company agrees to provide funding to the CCO, it must within 90 days of receiving annual financial covenant reporting from a CCO Shareholder (in its capacity as a borrower) report to the Shareholders' Council, holders of ordinary shares in the Company and any Local Authority guarantors of the Company's liabilities as to whether that CCO Shareholder has complied with its financial covenants on an individual and consolidated group basis.

Notwithstanding the definition of "CCO" set out above, the Board may not approve a CCO to borrow from the Company unless 100% of the equity securities carrying voting rights at a meeting of shareholders of the CCO are held or controlled, directly or indirectly, by one or more Local Authorities and the Crown (if applicable).



## NEW ZEALAND LOCAL GOVERNMENT FUNDING AGENCY LIMITED

## PROXY FORM



I/We \_\_\_\_\_

of \_\_\_\_\_

being a Shareholder of New Zealand Local Government Funding Agency Limited ("**Company**") appoint  
\_\_\_\_\_

of \_\_\_\_\_ or failing him/her \_\_\_\_\_

of \_\_\_\_\_ as my/our proxy to vote for me/us at the annual meeting of the Company to be held on 19 November 2024 and at any adjournment thereof.

Except as noted below, if you wish to direct the proxy how to vote, please indicate with a ☒ in the appropriate box below. Unless otherwise instructed, the proxy will vote as he or she thinks fit.

In relation to the resolutions for the election of Directors at 1(a) – 1(d) below, if you do not wish direct the proxy to vote "for" the appointment of a candidate, you should either vote "against" or "abstain" in respect of that candidate. ***If you do not direct your proxy how to vote on any of resolutions 1(a) – 1(d) below, you will be deemed to have abstained from voting on that resolution (and your proxy will not be entitled to exercise his or her discretion).***

|              |                                                                                                  | For                      | Against                  | Abstain                  |
|--------------|--------------------------------------------------------------------------------------------------|--------------------------|--------------------------|--------------------------|
| <b>1 (a)</b> | To re-elect <b>Alan Adcock</b> as a non-Independent Director                                     | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>1 (b)</b> | To re-elect <b>Craig Stobo</b> as an Independent Director                                        | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>1 (c)</b> | To elect <b>Kumaren Perumal</b> as a non-Independent Director                                    | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>1 (d)</b> | To elect <b>Elena Trout</b> as an Independent Director                                           | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
|              |                                                                                                  | For                      | Against                  | Abstain                  |
| <b>2 (a)</b> | To re-elect <b>Auckland Council</b> as a Nominating Local Authority to the Shareholders' Council | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |

|              |                                                                                                                                                                              | For                      | Against                  | Abstain                  |
|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|--------------------------|--------------------------|
| <b>2 (b)</b> | To re-elect <b>Wellington City Council</b> as a Nominating Local Authority to the Shareholders' Council                                                                      | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>3</b>     | To approve the following increases in Director fees payable, in each case with effect from 1 July 2024:                                                                      | <b>For</b>               | <b>Against</b>           | <b>Abstain</b>           |
| <b>(a)</b>   | In respect of the Director acting as chair of the Board of Directors, an increase of \$3,720 per annum, from \$124,000 per annum to \$127,720 per annum                      | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>(b)</b>   | In respect of the Director acting as chair of the audit and risk committee, an increase of \$2,340 per annum, from \$78,000 per annum to \$80,340 per annum                  | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>(c)</b>   | In respect of each of the other Directors acting as members of the audit and risk committee, an increase of \$2,190 per annum, from \$73,000 per annum to \$75,190 per annum | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>(d)</b>   | In respect of each of the other Directors, an increase of \$2,100 per annum, from \$70,000 per annum to \$72,100 per annum                                                   | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| <b>4</b>     | To approve the changes to the Foundation Policies of the Company                                                                                                             | <b>For</b>               | <b>Against</b>           | <b>Abstain</b>           |
|              |                                                                                                                                                                              | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |

(Please refer to the notice of meeting for details of the resolutions)

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**Signature of Shareholder**

**Dated:** 2024

**Notes:**

1. Voting on resolutions 1(a) to (d) will be undertaken by way of a poll.
2. If you wish you may appoint as your proxy the chairperson of the meeting.
3. If you are a body corporate, this proxy form must be signed on behalf of the body corporate by a person acting under the body corporate's express or implied authority.

4. For this proxy form to be valid, you must complete it and provide it to the Company at least 48 hours before the time for holding the meeting. You can provide it to the Company by delivering it to **Level 11, City Chambers, 142 Featherston Street, Wellington 6145** or via email to [jane.phelan@lgfa.co.nz](mailto:jane.phelan@lgfa.co.nz). It must be received at least 48 hours before the time for holding the meeting.
5. If this proxy form has been signed under a power of attorney, a copy of the power of attorney (unless already deposited with the Company) and a signed certificate of non-revocation of the power of attorney must be provided to the Company with this proxy form.
6. If you return this form without directing the proxy how to vote on any particular resolution, you will be deemed to have given your proxy discretion and your proxy may vote how he or she thinks fit (except in relation to resolutions 1(a) to (d), where you will be deemed to have abstained from voting).
7. Capitalised terms in this proxy form have the meanings given to them in the Shareholders' Agreement in respect of New Zealand Local Government Funding Agency Limited dated 7 December 2011, as amended and restated on 23 November 2021, between the Company and its Shareholders.



20 September 2024

The Shareholders  
NZ Local Government Funding Agency (LGFA)

Dear Shareholder.

The LGFA will hold its Annual Meeting (AM) on 19 November 2024. The Shareholders' Council has considered the AM material and wishes to make recommendations to help with your decision making prior to the meeting.

Our role (as per the Shareholders' Agreement) includes requirements to:

- Make recommendations to Shareholders about the appointment, removal, re-election, replacement and remuneration of Directors.
- Make recommendations to Shareholders about any matters which require the approval of Shareholders.

Our recommendations on the AM **Resolutions 1 to 5** are as follows:

#### **Resolution 1 - Adoption of Financials**

The financial statements and Auditor's report for the company for the year ended 30 June 2024 will be presented for consideration and discussion. The Shareholders Council notes the strong financial performance of Local Government Funding Agency which achieved:

- A Net Operating Profit of \$10.05m was achieved, with both operating revenue and operating expenditure above SOI targets. Total operating income at \$20.9m (excl. unrealised hedging gains and losses) was \$0.3m above SOI budget, due to larger than forecast lending and interest rates. Operating expenditure at \$11.8m was \$1.8m above SOI budget, driven by Approved Issuer levies on off-shore borrowing.
- Record lending of \$6.1b was provided to the sector for the year, which is 90% of council's borrowing (excluding Auckland Council's offshore borrowings).
- LGFA has diversified its borrowing into offshore markets to meet the growing financing requirements of the sector.

***The Shareholders' Council recommends the resolution 1 is approved to adopt the financial statements and auditors report.***

#### **Resolution 2 - Election of Company Directors**

There are four nominees two independent and two non-independent directors (Council staff). Biographies of the nominees are attached to the "Notice of LGFA Annual Meeting November 2024" to which this letter of Shareholders' Council Recommendations is attached.

Shareholders' Council<sup>1</sup> has considered the nominations for election of company directors in the light of the skills required for the LGFA Board and recommends appointment of both independent Board nominees and one non-independent based on skills required for the

<sup>1</sup> the central govt representatives on Shareholders' Council abstained from voting for the non-independent Director role.

Board. Attachment 1 to this letter identifies the skills requirement for the Board of Directors of LGFA.

### **Craig Stobo**

In accordance with clause 3.3 of the Shareholders Agreement (“SHA”), Craig Stobo retires by rotation and being eligible, offers himself for re-election as an Independent Director.

The Shareholders’ Council **supports the re-appointment of Craig Stobo for a further term** as an Independent Director of LGFA. Craig has been Chair of LGFA since its inception and has played a critical role in leading LGFA from its inception to its current lending of \$20.5b to 77 councils and 5 CCOs. Craig has played a key role in advising central government ministers on the potential role and benefits of LGFA into the future, particularly to support councils and waters CCOs under Local Water Done Well reforms.

Re-election of Craig for a further term will provide continuity of the core roles of LGFA while preparing the organisation for the changing environment. Craig has been a long-standing director and Shareholders’ Council has asked the Board to prioritise succession planning. The SOI for LGFA includes goals for succession planning of the long-standing board to new leadership over the next few years and Craig would play a lead role in the success of this transition in his final term.

### **Elena Trout**

The Shareholders’ council **supports the election of Elena Trout as an independent director**. In accordance with clause 3.1 of the SHA, the number of directors is proposed to be increased to the maximum number of 7, with Shareholders’ Council and LGFA Board agreeing to the nomination of a sixth independent Board member to meet the changing and increasing demands of the Board, particularly to meet the increased complexity and breadth of operation in lending to waters CCOs under the Local Water Done Well reforms.

A recruitment process was undertaken by a Nomination Panel made up of representatives from the LGFA Board and the LGFA Shareholders’ Council. Elena Trout was identified as the preferred candidate for nomination. The Panel identified Elena Trout as bringing the necessary additional and complementary skills to the LGFA Board.

Elena is an experienced company director, board chair, management executive and professional civil engineer who has held leadership positions in the transport, energy and infrastructure sectors. In terms of Governance of utilities, Elena is a current director of Contact Energy. Elena’s skills and experience bring diversity of background to the Board and complement existing skills with her engineering background and her management and governance experience in infrastructure management and new investment, particularly around the risks and challenges of large infrastructure projects.

### **Non-independent directors**

Allan Adcock from Whangarei District Council was appointed as a **non-independent director** at the November 2021 AGM for a three-year term that expires at the November 2024 AGM. In accordance with clause 3.3 of the SHA, Alan Adcock retires by rotation and offers himself for re-election as a **non-independent** director.



In accordance with clause 3.5 of the SHA, **Kumaren Perumal** has been nominated by Bay of Plenty Regional Council as a non-independent Director.

Recognising the mix of skills being sought for the board, and consistent with historic practice, the Shareholders' Council recommends that only one non-independent director be selected. We have reviewed both nominees' skills and experience against the skills matrix for the Board and note that both Alan and Kumaren have skills and experiences relevant to the non-independent director position and have worked positively over the years to support LGFA.

The Shareholders' Council considered the relevance of both nominees' skills and experience in the context of the relatively turbulent environment of the next three years of LGFA operation. Both Local Waters Done Well reforms and the increasing pressure of higher debt levels for growth councils will impact on LGFA lending. Taking into account these matters, and after a formal process to consider where to place our recommendation, the Shareholders' Council recommends Alan Adcock for a second term on the Board.

Alan, who is current CFO at Whangarei District Council, has strong governance experience combining many years of local government executive leadership and CCO governance experience with an extensive commercial and banking background. His diversity of skills and experience mean he is well-placed to contribute effectively to the LGFA Board through the significant changes expected over the next few years.

The Shareholders' Council notes the importance of regular changes to the Board which need to be balanced against the benefits of board continuity, and considers a maximum two terms on the Board is the recommended maximum duration of membership for a high performing non-independent director unless there are extenuating circumstances.

***In summary with respect to resolution 2 The Shareholders' Council recommends:***

- ***Craig Stobo is re-elected as an independent director for an additional three-year term.***
- ***Elena Trout is elected as an independent director for a three-year term.***
- ***Alan Adcock is re-elected as a non-independent director for an additional three-year term.***

### **Resolution 3 - Election of Nominating Local Authorities to the Shareholders Council**

In accordance with clause 4.6 of the SHA, Auckland Council and Wellington City Council retire by rotation. Auckland Council and Wellington City Council being eligible, offer themselves for re-election. The primary representative for Auckland Council is their Head of Group Treasury, Andrew John. The primary representative to the shareholders council for Wellington City Council is their Treasurer Sarah Houston-Eastergaard. There have been no other nominations to the shareholders council.

***In summary for Resolution 3 The Shareholders Council recommends:***

- ***the re-election of Auckland Council and***
- ***the re-election of Wellington City Council.***

#### Resolution 4 - Directors' Remuneration

Approval is sought in accordance with clause 3.6 of the SHA, to approve, by way of Ordinary Resolution, an increase in the Directors' fees payable to:

- a) With effect from 1 July 2024, the Director acting as chair of the Board, an increase of \$3,720 per annum, from \$124,000 per annum to \$127,720 per annum.
- b) With effect from 1 July 2024, each of the other Directors acting as members of the audit and risk committee, an increase of \$2,190 per annum, from \$73,000 per annum to \$75,190 per annum.
- c) With effect from 1 July 2024, the Director acting as chair of the audit and risk committee, an increase of \$2,340 per annum, from \$78,000 per annum to \$80,340 per annum.
- d) With effect from 1 July 2024, each of the other Directors, an increase of \$2,100 per annum, from \$70,000 per annum to \$72,100 per annum

The director increases sought are an adjustment of 3% which is just below the CPI to June of 3.3% of the Board fees that were set at the November 2023 AM for 2023/24. The Shareholders' Council supports the annual CPI movement to maintain parity with market rates and avoid the requirement for more significant adjustments to director remuneration through periodic full market review. The next full market review for the LGFA board is proposed for the November 2025 AM.

***In summary for Resolution 4 Shareholders' Council recommends adoption of the directors' remuneration increases proposed.***

#### Resolution 5 Changes to LGFA Foundation Policies

Amendments are sought to Schedule 1 of the SHA Foundation policies. These amendments are to:

- a) **remove the "A" credit rating requirement noting instead that the higher borrowing limits are available to rated councils.**  
To assess credit quality of borrowing councils LGFA relies upon the financial covenants and its own credit monitoring rather than the "A" rating required in the foundation policies. LGFA notes the "A" rating is subjective amongst rating agencies. This change would avoid doubt as to whether the covenants would apply to "A-" ratings, with some councils' ratings potentially moving lower as council debt increases over time in response to infrastructure investment requirements.
- b) **Allow bespoke covenants up to 350% Net Debt:Total Revenue ratio for rated councils on a bespoke basis at the discretion of the Board.**  
This proposal is to support high growth councils that may exceed covenants to provide growth infrastructure. The expectation of LGFA Board is that the bespoke higher covenants would not apply to more than 15-20% of total LGFA lending to councils. This ratio will be monitored by the shareholders' council with a view to such covenants not exceeding 20% of total Council lending by LGFA. A fuller

discussion of the Board's recommendation regarding delegation to provide bespoke covenants is provided in explanatory note 5 to the Notice of Annual Meeting.

***In summary with respect to Resolution 5 Shareholders' Council supports the proposed amendments to the foundation policies.***

I trust you find this information helpful. Please contact me or your Shareholders' Council contact should you wish to discuss any matter relating to this letter or any other aspects of LGFA operations.

**The emails of Shareholders' Council representatives are as follows:**

**Chair:** Kathryn Sharplin – Tauranga City Council - [kathryn.sharplin@tauranga.govt.nz](mailto:kathryn.sharplin@tauranga.govt.nz)

**Deputy Chair:** Sarah Houston-Eastergaard – Wellington City Council - [sarah.houston-eastergaard@wcc.govt.nz](mailto:sarah.houston-eastergaard@wcc.govt.nz)

**Other Local Authority Members:**

- Kumaren Perumal – Bay of Plenty Regional Council - [kumaren.perumal@boprc.govt.nz](mailto:kumaren.perumal@boprc.govt.nz)
- Mike Drummond – Tasman District Council - [mike.drummond@tasman.govt.nz](mailto:mike.drummond@tasman.govt.nz)
- David Bryant – Hamilton City Council - [david.bryant@hcc.govt.nz](mailto:david.bryant@hcc.govt.nz)
- Andrew John – Auckland City Council - [andrew.john@aucklandcouncil.govt.nz](mailto:andrew.john@aucklandcouncil.govt.nz)
- Steven Ballard – Christchurch City Council - [steve.ballard@ccc.govt.nz](mailto:steve.ballard@ccc.govt.nz)
- Adele Henderson – Western Bay of Plenty District Council - [adele.henderson@westernbay.govt.nz](mailto:adele.henderson@westernbay.govt.nz)
- Jacqueline Baker – New Plymouth District Council - [jacqueline.baker@NPDC.govt.nz](mailto:jacqueline.baker@NPDC.govt.nz)

**Yours sincerely**



**Kathryn Sharplin**  
Chair, LGFA Shareholders' Council

cc. Mark Butcher, Chief Executive LGFA

## **Attachment 1: LGFA Shareholders Council Recommendations for AM 19 November 2024**

### **Skills requirement for Board of Directors of LGFA**

Regarding Director appointments, we believe there are core competencies that every Director should have, and aspects that the Board as a whole should cover. We do not expect every Director to cover all areas because diversity in thinking and experience can be achieved by having a Board with a wide range of backgrounds. Across the Board we look for complementary skills to cover the areas listed below.

We believe the areas listed below are critical. We have recently added the last two items to reflect the current and future pressures facing local authorities and LGFA:

- Proven financial & commercial experience
- Governance experience
- Strategic Thinking capability
- Risk and Compliance Understanding
- Networks within Central and Local Government
- Understanding of infrastructure and capital projects and risks
- Understanding of the infrastructure financing challenges facing local and central government

For the areas listed below, we expect to see the overall composition of the Board covering all of them. The Shareholders' Council will keep this list under review to make sure it meets both current and foreseeable needs:

- Risk management
- Treasury, Legal and Financial Strategy experience
- IT Technology, Cyber-security
- ESG or Green Funding
- Local Government experience including large Scale infrastructure project understanding
- State Owned Enterprise and Crown Company experience.

To meet the increased complexity and breadth of operation of LGFA, particularly in lending to waters CCOs under the Local Water Done Well reforms, the nomination of a sixth independent Board member to meet the changing and increasing demands of the Board is supported by Shareholders Council. Looking to enhance skills in large infrastructure investments including project cost benefit assessment, delivery, and risk.

## 6.3 Road Corridor Maintenance Contract Procurement Plan

**Meeting:** Whangarei District Council  
**Date of meeting:** 24 October 2024  
**Reporting officer:** Jeff Devine, Transportation Manager

### 1 Purpose / Te Kaupapa

To seek Council approval of the Procurement Plan for the Whangarei Road Corridor Maintenance Contracts.

### 2 Recommendations / Whakataunga

That the Council:

1. Approves the Procurement Plan for the Whangarei Road Corridor Maintenance Contracts
2. Notes Additional reporting requirements will be introduced during the contract implementation phase for staff to report on the contract progress and performance to the Chief Executive and the Chairman of the Infrastructure Committee on a quarterly basis in addition to monthly reporting through the Operations Report.
3. Notes that following the procurement process, Contract Awards will be brought back to council for approval. This is expected to be in April 2025.

### 3 Background / Horopaki

The current Road Maintenance and Renewal contracts (CON17085 and CON17086) will end on 30<sup>th</sup> June 2025. It is necessary to prepare for new contracts to ensure continuous maintenance and renewals of the roading assets.

This Procurement Plan is for the procurement of physical works contractors for the new Maintenance and Renewal contracts.

### 4 Discussion / Whakawhiti kōrero

#### 4.1 Procurement Scope

The key outcomes sought through this procurement are:

- Continuous improvement for our roads and other ways of getting around,
- Improving resilience of the network,
- A competitive market environment supporting growth in local suppliers and supply chains

- Improving customer satisfaction, improving quality outcomes and value for money,
- A strong safety focus for both those working on and using our roads.

WDC is looking for suitably qualified and experienced contractors with the capability and resource to deliver maintenance and renewals activities within the Whangarei district.

The district will continue to be divided into 2 areas and two distinct contract opportunities will be made available within the district:

- Whangarei North Maintenance Contract.
- Whangarei South Maintenance Contract

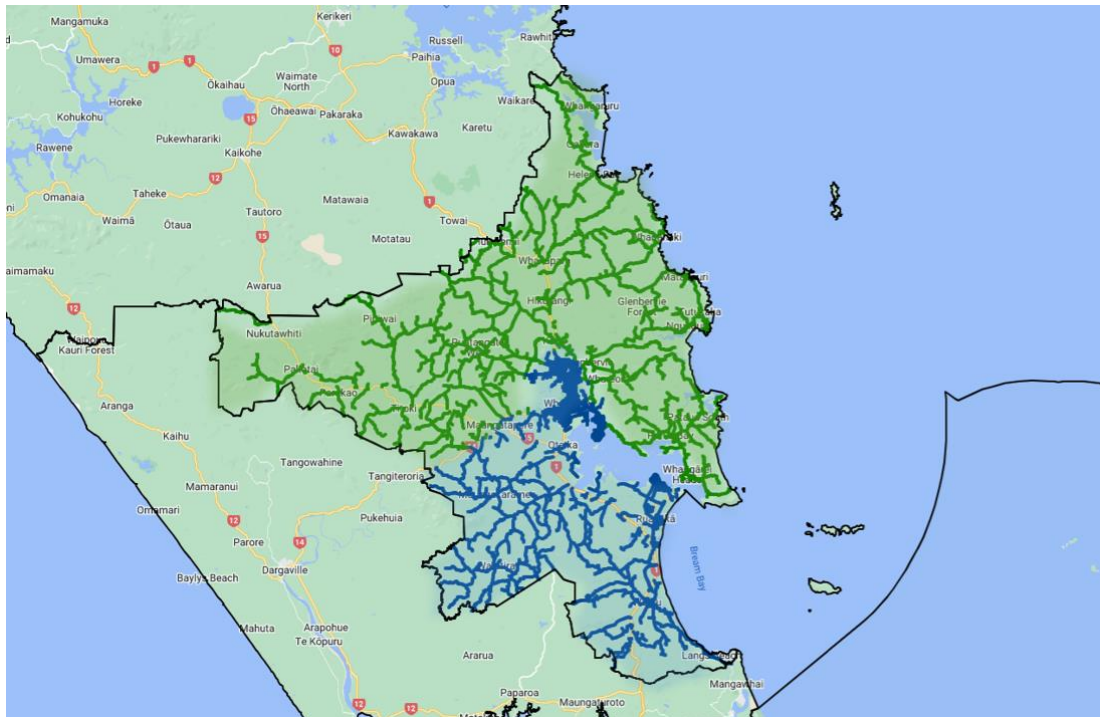


Figure 1: Whangarei North and South Contract Areas

The benefit of continuing with this contract arrangement is that we will have two contracts of sufficient scale to attract quality contractors and value for money. Opportunities for lower tier contractors will be maximized through a local market supplier requirement, a separate renewals panel and increasing the scope of the City Centre Custodial Contract (Currently managed by Parks).

The contract will be reviewed after three years and this will provide an opportunity to refine the contract arrangement. This could include putting more work into a City Centre contract if we are not getting the performance expected.

This approach also reduces the programme risk meaning that we will be able to get to the market quicker.

In parallel to this, WDC will be procuring a local panel of Renewals Contractors who will provide additional capacity for Council to deliver its roading programme. Renewals is likely to include pavement, footpaths and carparks. This approach specifically targets local lower tier suppliers. It also provides an incentive mechanism for the Maintenance Contractor to perform.

Consideration was made to providing a central contract that would be back of kerb to fence line and include some aspects of the City Centre Custodial Contract. It is proposed that some aspects of the current Roding Contract be included in the new City Centre Custodial

Contract for July 25 however at this stage a more significant review will be undertaken in three years' time.

Key changes in this contract are:

- Inspections – these will be managed by WDC through the Asset Management function. If required, professional services resources will be procured separate to this process.
- Forward works planning – this will be a collaborative effort between WDC and the Contractor
- Street Sweeping is likely to be extracted from the Road Maintenance Contract and tendered as a separate contract.
- No right for all renewals work – a proportion to be tendered through the renewals panel

Physical works contractors may tender for both maintenance contracts, however, no one contractor may be awarded both the North and South maintenance contracts.

The two maintenance and renewal contracts will be 9-year NZS3917 contracts which will include a combination of lump sum and measure and value activities, similar to the current contracts. There will be a review after every three years to allow for Contract modifications aligned with LTP changes.

## 4.2 Timeframes

Both contracts are to be awarded by mid-April 2025 to enable an implementation period prior to WDC business as usual activities commencing 1 July 2025.

The procurement programme is attached to the Procurement Plan.

## 4.3 Procurement Method

To ensure the required timelines are met, a single-staged open-market procurement process is recommended. The open market tender provides transparency and fairness to all market suppliers who may be interested in high-value road maintenance contract opportunities.

Interested Contractors will be provided with RAM data so that proponents have sufficient time to analyse data, and we achieve a fairer playing field for new suppliers. Interactive workshops with proponents will be held to discuss expectations

To ensure a manageable number of tenders are received (which require evaluation within the tight timeframes), by suppliers who have the appropriate skillsets and resources to manage a contract of this size and scale, strict precondition requirements will be stipulated within the Request for Tender (RFT) documents. Suppliers who do not meet all precondition requirements, and who do not meet all pass/fail requirements, can be removed from further evaluation.

The two RFTs will be released and evaluated in parallel.

Each boundary area will be one contract. Both North and South contracts will not be awarded to any one contractor.

Non-Price attributes within the Maintenance Contract RFT documents will be separated into two categories:

- General Requirements – Requirements that are not specific to a contract or area. This information is to be completed by all Tenderers.
- Contract / Area Specific Requirements – Requirements specifically relating to the maintenance or renewals scope and the area being tendered for. This information is to be completed only by those Tenderers tendering for that specific contract.

#### 4.4 Evaluation Criteria

The table below details the tender criteria, and the weightings that will be used for both Maintenance Contract RFTs.

These criteria will be used to formulate specific questions for tenderers to respond to within the RFT documentation. Subject to review following compilation of the tender documents.

| Criteria                             | Weighting |
|--------------------------------------|-----------|
| Relevant Experience - Organisational | 10%       |
| Track Record - Organisational        | 10%       |
| Relevant Skills - Personnel          | 20%       |
| Methodology                          | 30%       |
| Price                                | 30%       |

#### 4.5 Evaluation Method

The Price Quality Method (PQM) of evaluation will be used. PQM is a supplier selection method where the preferred supplier is selected by balancing price and quality via a formula. PQM is used where the best value for money will be obtained by having suppliers compete on both price and quality and selecting the supplier that offers the best combination of the two. The process to determine how additional quality is valued must be clearly described in the tender.

Following the conclusion of the tender evaluation process, and upon agreement of all TET members, a tender evaluation and recommendation report (TER) will be submitted for approval. This report will provide summary details of the tender evaluation process and will provide a recommendation of those suppliers who should be awarded a contract.

Once the TER has been approved, award and decline letters will be sent to all tenderers notifying of the tender outcome. Following this, those tenderers who wish to receive a tender debrief may request one.

Award of Contracts will be brought to Council for approval in April 2025.

#### 4.6 Reporting

As part of the implementation of these future contracts it is felt its is important to keep Councillors better informed of the progress and performance of the contracts and the contractors. It is intended to include a requirement for staff to provide an update to the Chief Executive and the Chairman of the Infrastructure Committee on a quarterly basis in addition to the monthly Operational Report for Councillors on the performance of the contractors against the finances and KPI's defined in the contracts.



#### 4.7 Financial/budget considerations

The annual approved NZTA budget is \$45M per annum across the whole district, plus any unsubsidised work.

The size of each new contract is detailed in the table below:

| Contract Name                                 | Current Contractor | Current Contract Value per annum | Future Contract Value per annum | Total size (km) | Local Roads – Urban Size (km) | Local Roads – Rural Size (km) | Sealed (km) | Unsealed (km) |
|-----------------------------------------------|--------------------|----------------------------------|---------------------------------|-----------------|-------------------------------|-------------------------------|-------------|---------------|
| Whangarei (North) Road Maintenance & Renewals | Fulton Hogan       | \$17M                            | \$22M                           | 943             | 38                            | 905                           | 533         | 409           |
| Whangarei (South) Road Maintenance & Renewals | Downer             | \$18M                            | \$23M                           | 819             | 295                           | 524                           | 549         | 270           |

The contract value for each area will be reduced by circa \$2m to enable some renewals work to be undertaken through the Renewals Panel

As a 9 year contract the total value for this procurement activity is circa \$400m uninflated.

Budget is available from the Long-Term Plan (LTP) and a 53% FAR subsidy from the Regional Land Transport Plan (RLTP) has been made available.

Over the course of the contract there will be adjustments to the level of work so that it is within Council Budget. Noting that Council Budget is subject to Waka Kotahi funding assistance rate as well as Council decisions regarding allocation of local share.

#### 4.8 Policy and planning implications

None

#### 4.9 Options

Option 1 is to approve the Procurement Plan so that the new contracts can be awarded mid-2025.

Option 2 is to require that officers investigate alternative procurement options. This would delay award till later in 2025 but could be accommodated with an extension to current contracts.

**Option 1 is the recommended option.**

#### 4.10 Risks

The Whangarei District Council Roading (Transportation) team have extensive experience in developing and procuring contracts. As such the risk is considered low, although the timeframe is constrained.

Procurement Risks have been identified within the Procurement Strategy and remain unchanged. The risk register is included at Appendix 1.

## **5 Significance and engagement / Te Hira me te Arawhiti**

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via agenda publication on the website.

The tender will be public, and the Procurement Plan is being approved in public forum. There will be an industry briefing for all Contractors who register their interest.

## **6 Attachment / Ngā Tāpiritanga**

Appendix 1      Procurement Plan - Including Programme and Risk Register

# ***Road Maintenance & Renewals Procurement Plan***

***Whangarei District Council***

**Version 1 (October 2024)**

### **Document Summary Table**

|                                 |                                                            |
|---------------------------------|------------------------------------------------------------|
| <b>Date</b>                     | October 2024                                               |
| <b>Procurement Project Name</b> | WDC Road Maintenance and Renewals                          |
| <b>Department</b>               | Infrastructure Roading                                     |
| <b>Prepared by</b>              | Laura Devcich, Transportation Project Manager - Contractor |
| <b>Project Manager</b>          | Jeff Devine, Transportation Manager                        |
| <b>Project Sponsor</b>          | Jim Sephton, GM Infrastructure                             |

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## 1 Background

The current Road Maintenance and Renewal contracts (CON17085 and CON17086) will end on 30<sup>th</sup> June 2025. It is necessary to prepare for new contracts to ensure continuous maintenance and renewals of the roading assets.

This Procurement Plan is for the procurement of physical works contractors for the new Maintenance and Renewal contracts.

Two Contract numbers are to be generated shortly for these contracts.

## 2 Procurement Objectives

### 2.1 Vision and Outcomes for the new Contracts

---

Recognising WDC's vision of being an inclusive, resilient and sustainable District, the new WDC Road Maintenance and Renewals contracts will empower WDC as the custodian of the asset, enabling greater control and influence over the network, promoting resilience and efficient, sustainable delivery of maintenance and renewals within the district.

The key outcomes sought are:

- Continuous improvement for our roads and other ways of getting around,
- Improving resilience of the network,
- A competitive market environment supporting growth in local suppliers and supply chains
- Improving customer satisfaction, improving quality outcomes and value for money,
- A strong safety focus for both those working on and using our roads.

### 2.1 Healthy Market

---

A healthy road maintenance industry would be represented by a competitive environment with multiple capable contractors and consultants actively bidding for contracts, producing quality work, on time, in a cost-effective manner, and driving innovation. It is important to ensure the balance of power between supplier and client.

Within the Road Maintenance and Renewals agreements, WDC is looking for direct access to enough quality suppliers to provide all required maintenance activities, sufficient that:

- A healthy level of competition is maintained, value for money is provided to the ratepayer and user,
- There is good collaboration between the client and contractor,
- WDC manages a serviceable number of contracts,
- The contracts are sized appropriately to enable contractor investment and innovation whilst making a fair profit, and minimising duplication of cost overheads.

### 2.1 Procurement Objectives, Risks and Assumptions

---

The key procurement objectives are

- For the socialisation of the contract opportunity to the market with sufficient detail of the procurement requirements and timeframes so that the market is informed and ready to tender,

- Creating and following a clean procurement process that provides fairness and transparency to the market, and efficiency to WDC,
- Contract award to competent and capable suppliers that are fit for purpose and can deliver on all maintenance and operations expectations.

A number of procurement risks and assumptions have been identified and are discussed within. The risks classified as 'high' include insufficient time for internal WDC teams to provide all inputs to the Request for Tender (RFT); and the risk that WDC do not have the resource capacity to deliver the procurement, evaluate all tenders received, agree on outcomes, and gain all approvals within the proposed timeframe.

### 3 Scope of this Plan

WDC is looking for suitably qualified and experienced contractors with the capability and resource to deliver maintenance and renewals activities within the Whangarei district.

The district will be divided into 2 areas and two distinct contract opportunities will be made available within the district:

- Whangarei North Maintenance Contract.
- Whangarei South Maintenance Contract

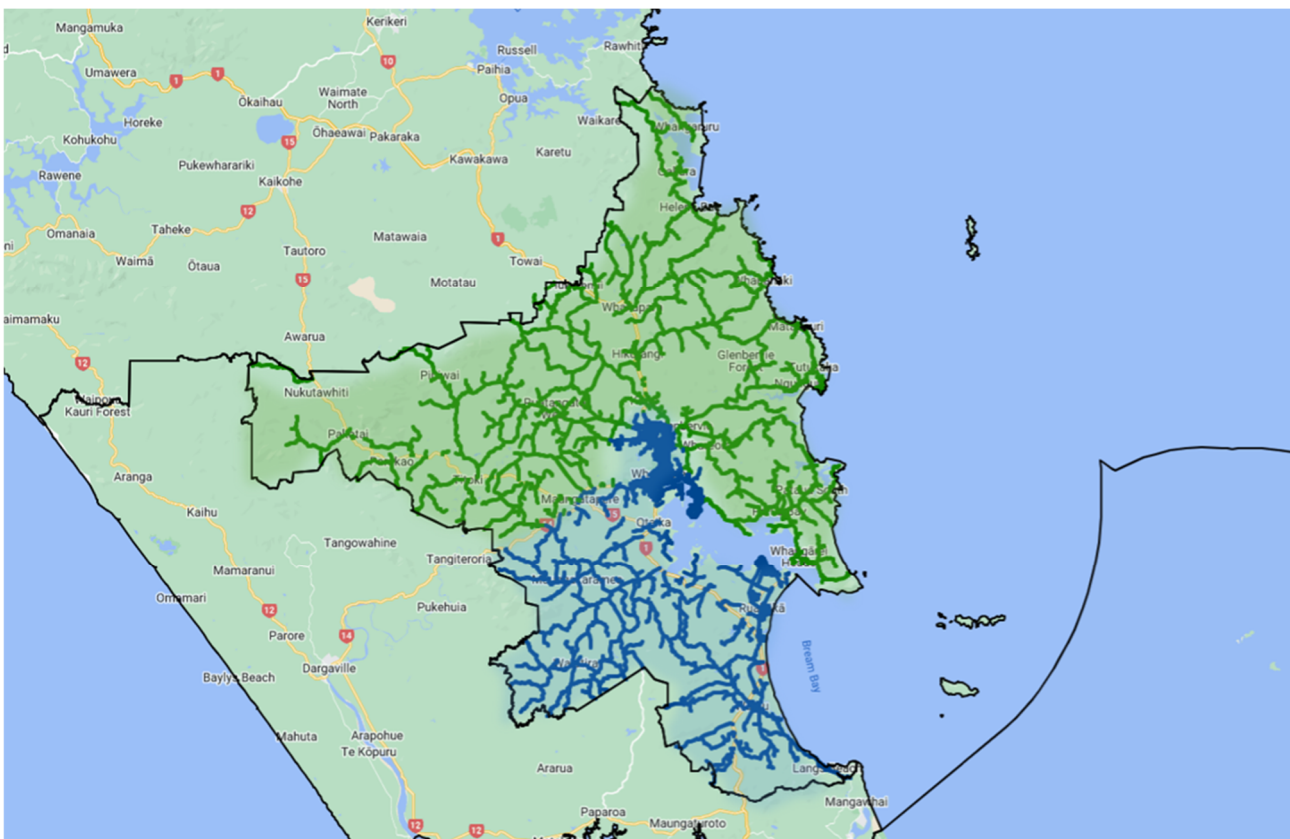


Figure 1: Whangarei North and South Contract Areas

WDC will be procuring a local panel for Renewals contracts who will provide additional capacity for Council to deliver its roading programme.

## 2.1 Scope inclusions

---

The WDC North and South Road Maintenance agreements will take a fence-to-fence approach to deliver the following activities:

- Sealed pavements
- Unsealed pavements
- Drainage maintenance and renewals
- Signs maintenance and renewals
- Traffic facilities maintenance and renewals
- Traffic delineation
- Paths maintenance and renewals
- Structures minor maintenance
- Vegetation Envelope
- Street furniture maintenance and renewals
- Clean fill site management (Earthworks)
- Emergency works and callouts
- Minor capital improvements works
- Car parks

## 2.2 Scope Exclusions

---

These contracts explicitly exclude:

- Inspections – these will be managed by WDC through the Asset Management function. If required, professional services resources will be procured separate to this process.
- Forward works planning,
- New build, or larger scale capital works (including major bridge works),
- Traffic signals,
- Mechanical bridges,
- Streetlights,
- Parking meters.

Street Sweeping is likely to be extracted from the Road Maintenance Contract and tendered as a separate contract. The benefits of this are:

- This will allow organisations with expertise in this area (including material recovery) to come to the market.
- This activity is largely tendered out to
- There is currently little focus on sustainability or environmental outcomes.
- Roading contractors are not addressing health and safety concerns relating to road side spraying.

## 2.3 Contract Details

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Physical works contractors may tender for both maintenance contracts, however, no one contractor may be awarded both the North and South maintenance contracts.

The two maintenance and renewal contracts will be 9-year (3+3+3) NZS3917 contracts including a combination of lump sum and measure and value activities, similar to the current agreement.

Both contracts are to be awarded by Mid April 2025 to enable an implementation period prior to WDC business as usual activities commencing 1 July 2025.



## 4 Financial

### 3.1 Estimated Value

The annual approved NZTA budget is \$45M per annum across the whole district, plus any unsubsidised work.

The size of each new contract is detailed in the table below:

| Contract Name                                 | Current Contractor | Current Contract Value per annum | Future Contract Value per annum | Total size (km) | Local Roads – Urban Size (km) | Local Roads – Rural Size (km) | Sealed (km) | Unsealed (km) |
|-----------------------------------------------|--------------------|----------------------------------|---------------------------------|-----------------|-------------------------------|-------------------------------|-------------|---------------|
| Whangarei (North) Road Maintenance & Renewals | Fulton Hogan       | \$17M                            | <b>\$22M</b>                    | 943             | 38                            | 905                           | 533         | 409           |
| Whangarei (South) Road Maintenance & Renewals | Downer             | \$18M                            | <b>\$23M</b>                    | 819             | 295                           | 524                           | 549         | 270           |

### 3.2 Budget and Subsidy

Budget is available from the Long-Term Plan (LTP) and a 53% FAR subsidy from the Regional Land Transport Plan (RLTP) has been made available.

## 5 Specifications and KPI's

A contract management specification is included within the contract. This provides for contract governance, management and reporting requirements.

The contract specifications are currently under review and will be updated as required prior to Request for Tender (RFT) release.

Performance will be measured via appropriate linked Management Performance Measures (MPMs), Operational Performance Measures (OPMs), and Bonus Performance Measures (BPMs), similar to the current contracts. These performance measures are currently under review and will be updated as required prior to RFT release.

## 6 Procurement Method

To ensure the required timelines are met, a single-staged open-market procurement process is recommended. The open market tender provides transparency and fairness to all market suppliers who may be interested in high-value road maintenance contract opportunities.

To ensure a manageable number of tenders are received (which require evaluation within the tight timeframes), by suppliers who have the appropriate skillsets and resources to manage a contract of this size and scale, precondition requirements will be stipulated within the RFT documents. Suppliers who do not meet all precondition requirements, and who do not meet all pass/fail requirements, can be removed from further evaluation.

The two RFTs will be released and evaluated in parallel.

Each boundary area will be one contract. Both North and South contracts will not be awarded to any one contractor.

Non-Price attributes within the Maintenance Contract RFT documents will be separated into two categories:

- General Requirements – Requirements that are not specific to a contract or area. This information is to be completed by all Tenderers.
- Contract / Area Specific Requirements – Requirements specifically relating to the maintenance or renewals scope and the area being tendered for. This information is to be completed only by those Tenderers tendering for that specific contract.

## 5.1 Evaluation Criteria

The table below details the tender criteria, and the weightings that will be used for both Maintenance Contract RFTs.

These criteria will be used to formulate specific questions for tenderers to respond to within the RFT documentation. Subject to review following compilation of the tender documents.

| Criteria                             | Weighting   |
|--------------------------------------|-------------|
| Relevant Experience - Organisational | 10%         |
| Track Record - Organisational        | 10%         |
| Relevant Skills - Personnel          | 20%         |
| Methodology                          | 30%         |
| Price                                | 30%         |
| <b>Total</b>                         | <b>100%</b> |

## 5.2 Evaluation Method

The Price Quality Method (PQM) of evaluation will be used. PQM is a supplier selection method where the preferred supplier is selected by balancing price and quality via a formula. PQM is used where the best value for money will be obtained by having suppliers compete on both price and quality and selecting the supplier that offers the best combination of the two. The process to determine how additional quality is valued must be clearly described in the tender.

The Tender Evaluation Team (TET) is named below in *Item 9 – Project Team Members and Specialist Advisors*.

The dates for tender evaluation are provided at Appendix A.

Following the conclusion of the tender evaluation process, and upon agreement of all TET members, a tender evaluation and recommendation report (TER) will be submitted for approval. This report will provide summary details of the tender evaluation process and will provide a recommendation of those suppliers who should be awarded a contract.

Once the TER has been approved, award and decline letters will be sent to all tenderers notifying of the tender outcome. Following this, those tenderers who wish to receive a tender debrief may request one.

## 7 Risks

The Whangarei District Council Roding (Transportation) team have extensive experience in developing and procuring contracts. As such the risk is considered low, although the timeframe is constrained.

Procurement Risks have been identified within the Procurement Strategy and remain unchanged. The risk register is included at Appendix B.

### **6.1 Procurement Policy Risk Matrix Category**

~~Negligible / Low / Moderation / High / Extreme~~  
 (strike out those not applicable)

## **8 Procurement Programme**

See Appendix A.

## **9 Project Team members and Specialist Providers**

The Project Team members are as per the following table:

| <b>Name</b>       | <b>Position</b>               | <b>Role in Project</b>                   |
|-------------------|-------------------------------|------------------------------------------|
| Tim Ward          | Maintenance Team Lead         | Business Owner                           |
| Laura Devcich     | External Contractor           | Project Manager                          |
| Mark Seakins      | Seakins Engineering Solutions | Tender Evaluation Chair<br>(non-scoring) |
| Tim Ward          | Maintenance Team Lead         | Tender Evaluation Team                   |
| Michael Batchelor | Transport Asset Manager       |                                          |
| Lucas Nikkel      | Stellar Projects              |                                          |
| Scott Verevis     | AME Limited                   | Subject Matter Expert(s)                 |
| TBC               | Probity Advisor               |                                          |

## **10 Conflicts of Interest**

Conflicts of interest declarations (COIs) are to be made by all members of the procurement project team.

It is a requirement, of the individual, to ensure that these COIs are kept accurate and up to date.

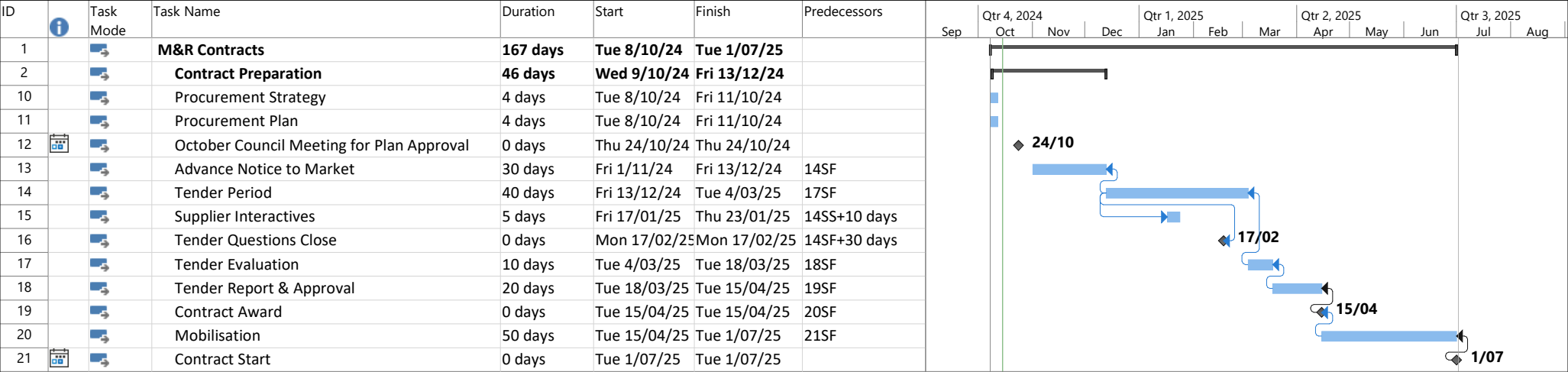
## **11 Compliance with Policy**

The proposed procurement is compliant with the NZTA Procurement Policy as per requirements.

## **12 Sustainability**

The proposed procurement seeks to ensure sustainable market conditions for Contractors and long term value for money for the Council.

## ***Appendix A – Procurement Programme***



|                                                      |           |             |                    |             |                       |             |                    |             |                 |             |
|------------------------------------------------------|-----------|-------------|--------------------|-------------|-----------------------|-------------|--------------------|-------------|-----------------|-------------|
| Project: Maintenance Contracts<br>Date: Tue 15/10/24 | Task      | <div></div> | Project Summary    | <div></div> | Manual Task           | <div></div> | Start-only         | <div></div> | Deadline        | <div></div> |
|                                                      | Split     | <div></div> | Inactive Task      | <div></div> | Duration-only         | <div></div> | Finish-only        | <div></div> | Progress        | <div></div> |
|                                                      | Milestone | <div></div> | Inactive Milestone | <div></div> | Manual Summary Rollup | <div></div> | External Tasks     | <div></div> | Manual Progress | <div></div> |
|                                                      | Summary   | <div></div> | Inactive Summary   | <div></div> | Manual Summary        | <div></div> | External Milestone | <div></div> |                 |             |

## ***Appendix B – Procurement Risk Register***

## Non workplace and public places - Hazard and Risk Register

[Link to how to use and edit this hazard register](#)

[Link to Corrective Action Register](#)

[Link to hazard solution review form](#)

| Date entered | Hazard # | Person Responsible for Review | Department if applicable | Building level     | Specific location | Risk type                | Hazard Description                                                                                                                                                                                  | Initial Risk Assessment with no controls in place |              |             | Preventative Action                                                                                                                                                                                                                                                                                                 | Main Control type | Residual Risk Assessment with Controls (in place) |              |             | Last Review By | Review Comments                                     | Last Review Date | CAR # | Next review date due | Other comments | Relevant linked documents | Closed |
|--------------|----------|-------------------------------|--------------------------|--------------------|-------------------|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|--------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|---------------------------------------------------|--------------|-------------|----------------|-----------------------------------------------------|------------------|-------|----------------------|----------------|---------------------------|--------|
|              |          |                               |                          |                    |                   |                          |                                                                                                                                                                                                     | Consequence                                       | Likelihood   | Total Score |                                                                                                                                                                                                                                                                                                                     |                   | Consequence                                       | Likelihood   | Total Score |                |                                                     |                  |       |                      |                |                           |        |
| 11/07/2024   | 1        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Departure from current contract approach results in unforeseen risks being realised within new contract                                                                                             | Lost time injury = 3                              | Possible = 3 | 9           | (15-10-2024) Main change is to client lead inspections and setting of the forward works programme. (15-10-2024) The Tender preparation team is workshoping this issue and closing off all loopholes associated with changes to the contract document in this regard.                                                | Admin Controls    | Medical treatment injury = 2                      | Unlikely = 2 | 4           | LD             | 15/10 - Updated with mitigations currently in train | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 2        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Ability to deliver new contract to market within remaining timeframes. Internal staff already at capacity with their day to day work.                                                               | Fatality = 4                                      | Possible = 3 | 12          | (15-10-2024) We have engaged a Contractor to lead the Tender preparation process.                                                                                                                                                                                                                                   | Admin Controls    | Medical treatment injury = 2                      | Unlikely = 2 | 4           | LD             | 15/10 - Updated with mitigations currently in train | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 3        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Rushed approach to getting contracts to market results in poor quality, with cost implications for the tender process (contractor and client) and ongoing costs associated with an unclear contract | Lost time injury = 3                              | Unlikely = 2 | 6           | (15-10-2024) Timeframes are tight, but resources are dedicated and motivated.                                                                                                                                                                                                                                       | Admin Controls    | Medical treatment injury = 2                      | Unlikely = 2 | 4           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 4        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Low interest from key stakeholders                                                                                                                                                                  | Lost time injury = 3                              | Possible = 3 | 9           | (15-10-2024) Ensure Tenderers get early engagement with the opportunity to ask questions so they can resource the Tender period. We are doing this by holding a supplier briefing 5 working weeks before the Tender is released, and including a 10.5 working week tender period for them to submit.                | Admin Controls    | Medical treatment injury = 2                      | Rare = 1     | 2           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 5        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | New Supplier results in indefinite learning period during which we get poor outcomes                                                                                                                | Lost time injury = 3                              | Possible = 3 | 9           | (15-10-2024) Programme allows 10 working weeks for a new supplier to mobilise.                                                                                                                                                                                                                                      | Admin Controls    | Minor injury = 1                                  | Unlikely = 2 | 2           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 6        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Procurement policy not complied with resulting in lack of support from NZTA / our part funder                                                                                                       | Fatality = 4                                      | Unlikely = 2 | 8           | (15-10-2024) Procurement policy will be fully complied with. The Tender preparation team understand the procurement policy and are working directly with NZTA procurement to seek dispensation for a 3+3+3 year term if possible. (15-10-2024) We will utilise a probity auditor for the tender evaluation process. | Admin Controls    | Medical treatment injury = 2                      | Unlikely = 2 | 4           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 7        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Possibility of price fixing behaviour                                                                                                                                                               | Fatality = 4                                      | Rare = 1     | 4           | (15-10-2024) Additional layer of including probity auditor during tender eval to provide experience spotting warning signs.                                                                                                                                                                                         | Admin Controls    | Lost time injury = 3                              | Rare = 1     | 3           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |
| 11/07/2024   | 8        | Laura Devcich                 | Infrastructure Rooding   | Whangarei District | Both Contracts    | Contract & Delivery Risk | Conflict of interest within Tender Evaluation Team                                                                                                                                                  | Lost time injury = 3                              | Unlikely = 2 | 6           | (15-10-2024) Conflict of Interest register will be registered for Tender process, and conflicts avoided                                                                                                                                                                                                             | Admin Controls    | Medical treatment injury = 2                      | Rare = 1     | 2           | LD             | 15/10 - Updated with mitigations currently underway | 18/10/2024       |       | 18/10/2025           |                |                           |        |



|            |    |               |                        |                    |                |                          |                                                                                                                    |                              |              |   |                                                                                                                                                                                                                                                                                  |                |                              |              |   |    |                                                     |            |            |  |  |  |
|------------|----|---------------|------------------------|--------------------|----------------|--------------------------|--------------------------------------------------------------------------------------------------------------------|------------------------------|--------------|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|------------------------------|--------------|---|----|-----------------------------------------------------|------------|------------|--|--|--|
| 11/07/2024 | 9  | Laura Devcich | Infrastructure Rooding | Whangarei District | Both Contracts | Contract & Delivery Risk | Over complicated Contract leads to lack of understanding for Tenderers and poor quality of Tenders being submitted | Lost time injury = 3         | Unlikely = 2 | 6 | (15-10-2024) Contract will be very similar to previous form of contract allowing transferrable knowledge for tendering.                                                                                                                                                          | Admin Controls | Medical treatment injury = 2 | Rare = 1     | 2 | LD | 15/10 - Updated with mitigations currently underway | 18/10/2024 | 18/10/2025 |  |  |  |
| 11/07/2024 | 10 | Laura Devcich | Infrastructure Rooding | Whangarei District | Both Contracts | Contract & Delivery Risk | Lack of clarity regarding what services are to be included or excluded from the contract                           | Medical treatment injury = 2 | Possible = 3 | 6 | (15-10-2024) Final decisions regarding scope of contract to be closed off by 25 October at the latest to allow the Contract document to be finalised for Tender                                                                                                                  | Admin Controls | Medical treatment injury = 2 | Rare = 1     | 2 | LD | 15/10 - Updated with mitigations currently underway | 18/10/2024 | 18/10/2025 |  |  |  |
| 11/07/2024 | 11 | Laura Devcich | Infrastructure Rooding | Whangarei District | Both Contracts | Contract & Delivery Risk | Failure to understand and seek to resolve key stakeholder concerns with previous contracts                         | Lost time injury = 3         | Possible = 3 | 9 | (15-10-2024) These are top of mind for the internal project team delivering the new Contracts. We are workshopping this issue and will be proposing comprehensive solutions early next year for escalation. Many of these issues fall outside of the actual Contracts ecosystem. | Admin Controls | Medical treatment injury = 2 | Unlikely = 2 | 4 | LD | 15/10 - Updated with mitigations currently underway | 18/10/2024 | 18/10/2025 |  |  |  |



## 6.4 Nominees for Joint Climate Change Adaptation Standing Committee - Hapū Membership

**Meeting:** Whangarei District Council

**Date of meeting:** 24 October 2024

**Reporting Officer:** Rai Rakich, Engagement Advisor – Māori Outcomes  
 Turi Hippolite, Technical Adviser – Māori Outcomes.

### 1 Purpose / Te Kaupapa

To appoint Whangārei Hapū nominees to the Joint Climate Change Adaptation Standing Committee (JCCAC) to replace the original appointments of the Māori Ward Councillors.

### 2 Recommendations / Whakataunga

That the Council:

1. Appoint Whangārei Hapū nominees to the Joint Climate Change Adaptation Standing Committee:
  - Primary Representative: Delaraine Armstrong
  - Alternate: Hinemoa Apetera.
2. Note that these appointments will replace the current Māori Ward Councillors in accordance with the Terms of Reference for the Joint Climate Change Adaptation Standing Committee (March 2022):
  - Councillor Deb Harding
  - Councillor Phoenix Ruka.
3. Acknowledge and thank Councillor Deb Harding and Councillor Phoenix Ruka for their work whilst on the Joint Climate Change Adaptation Standing Committee.
4. Note the WDC Elected Member on the Joint Committee is Councillor Scott McKenzie and that Councillor Nicholas Connop is the alternate member.

### 3 Background / Horopaki

In 2020, it was agreed to establish a collaborative Joint Climate Change Adaptation Standing Committee between the four Northland councils. The purpose of this committee is to align local government climate adaptation policies, share information and methodologies, and pursue collaborative opportunities for effective regional adaptation planning.

The Joint Committee was designed to consist of eight members with equal representation between councillors and hapū/iwi representatives from across the region. Each council nominated one elected member and one hapū/iwi representative. Each position has the continuity of an alternate.

The current Joint Committee is made up of the following representatives:

### District Council Members

- Cr McKenzie (WDC), Alternate: Cr Connop
- Cr Tamati Rakena (FNDC), Alternate: Deputy Mayor Kelly Stratford
- Mayor Jepson (KDC)

### Iwi/Hapū Representatives

- Cr Ruka, Alternate: Cr Harding (WDC)
- Fiona Kemp (KDC)
- George Riley (Te Rūnanga o Te Rarawa), Alternate: Rowan Tautari (Te Whakapiko Hapū)

### Hapū/Iwi Representation:

For the 2019-2022 term, Te Huinga facilitated a hapū nomination process for membership on the Committee. These nominations were considered by the Te Kārearea Strategic Partnership Standing Committee at their meeting on 29 October 2020, resulting in the appointment of two hapū members.

For the current 2022-2025 term, His Worship the Mayor recommended the appointment of the Māori Ward Councillors to the hapū/iwi positions on the Committee. They were appointed to these roles at the council meeting held on 02 November 2022, marking a change from the previous process.

In September 2024, a recommendation was presented to Te Kārearea to endorse a nomination process led by Te Huinga to appoint two hapū representatives. This would replace the current hapū/iwi representation, which had previously been held by the Elected Members for the Māori Ward.

Te Huinga has since conducted the nomination process and submitted the names of two hapū members to Whangarei District Council. The two Hapū member nominees are:

- **Hapū Member:** Delaraine Armstrong
- **Hapū Member (Alternate):** Hinemoa Apetera.

## 4 Discussion / Whakawhiti kōrero

Councils, communities, and hapū/iwi are encouraged to work collaboratively through the Joint Climate Change Adaptation Plan, ensuring an effective, efficient, and equitable response to the impacts of climate change.

According to the Joint Climate Change Adaptation Committee (JCCAC) Terms of Reference (TOR), the section defining membership specifies the inclusion of hapū/iwi representatives:

*One representative from iwi / hapū nominated by each council from within their jurisdiction. Where possible, this nomination should follow recommendations from council Māori advisory groups or committees. Each council shall also nominate one alternative elected member and one alternative iwi / hapū member who will have full speaking and voting rights when formally acting as the alternate.*

For this triennium, Māori Ward Councillors were appointed to the hapū/iwi positions on the Joint Climate Change Adaptation Standing Committee. This recommendation seeks to endorse new appointments to the hapū/iwi representative roles for the Council on this committee, ensuring that the nominations of Māori advisory groups have been considered.

Te Karearea can endorse this approach, but the decision will be made by Council. The Council decision will include removal of the Māori Ward Councillors from the committee and the appointment of the nominee and the alternate to the committee.

#### **4.1 Financial/budget considerations**

Hapū/iwi-appointed members will be compensated at the normal current rate for hapū representatives serving on Whangarei District Council Committees. These costs are anticipated within and provided by the Strategic Planning Department Budget. The budget will account for a quarterly meeting schedule, capped at \$1,120 for meeting fees.

Additional hourly rates of \$150 will apply for the review and preparation of meeting material and mileage and are subject to approval. In general, these additional costs will be minimal due to the infrequency of the meetings throughout a calendar year.

### **5 Significance and engagement / Te Hira me te Arawhiti**

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via agenda publication on the website.

### **6 Attachment / Ngā Tāpiritanga**

Joint Climate Change Adaptation Committee | Terms of Reference - March 2022



## Joint Climate Change Adaptation Committee (JCCAC)

### Terms of Reference (TOR)

**March 2022**

#### **Background**

Climate change poses significant risks to the environment and people of Te Tai Tokerau - local government has responsibilities in reducing the impact of climate change (adaptation). It is essential that councils, communities and iwi / hapū work collaboratively to ensure an effective, efficient and equitable response to the impacts of climate change. Work on adaptation has already started between council staff with the formation of the joint staff working group Climate Adaptation Te Tai Tokerau and the development of a Climate Change Adaptation Strategy for Tai Tokerau. The formation of a joint standing committee of the Far North, Kaipara and Whangarei district councils and Northland Regional Council elected council members and iwi / hapū is fundamental to ensuring these outcomes are achieved in a coordinated and collaborative way across Te Tai Tokerau.

#### **Role and Responsibilities**

- 1) Provide direction and oversight of the development and implementation of climate change adaptation activities by local government in Te Tai Tokerau
- 2) Receive advice and provide direction and support to Climate Adaptation Te Tai Tokerau
- 3) Make recommendations to member councils to ensure a consistent regional approach is adopted to climate change adaptation activities
- 4) Act collectively as an advocate for climate change adaptation generally and within the individual bodies represented on the Committee
- 5) Ensure the bodies represented on the Committee are adequately informed of adaptation activity in Te Tai Tokerau and the rationale for these activities
- 6) Ensure the importance of and the rationale for climate change adaptation is communicated consistently within Te Tai Tokerau
- 7) Receive progress reports from Climate Adaptation Te Tai Tokerau

#### **Membership**

The Joint Climate Change Adaptation Committee (the committee) is a standing committee made up of elected members from the Far North, Kaipara and Whangarei district councils, the Northland Regional Council and representatives from Northland hapū and iwi.

The committee shall have eight members as follows:

One elected member from:

Kaipara District Council  
Far North District Council  
Whangarei District Council  
Northland Regional Council

Iwi / hapū members:

One representative from iwi / hapū appointed by each council from within their jurisdiction. Where possible, this appointment should follow recommendations from council Māori advisory groups or committees.

Each council shall also appoint one alternative elected member and one alternative iwi / hapū member who will have full speaking and voting rights when formally acting as the alternate.

**Status**

The Committee is a joint standing committee of council as provided for under Clause 30(1)(b) of Schedule 7 of the Local Government Act 2002 and shall operate in accordance with the provisions of Clause 30A of that Act. The committee is an advisory body only and has no powers under the Local Government Act 2002 (or any other Act) other than those delegated by decision of all member councils. The joint standing committee shall operate under Northland Regional Council Standing Orders.

**Committee Chair and deputy Chair:**

The Chair and Deputy Chair is to be appointed by the members at the first meeting of the committee.

**Quorum**

At least 50% of members shall be present to form a quorum.

**Meetings**

The Committee shall meet a minimum of two times per annum.

**Service of meetings:**

The Northland Regional Council will provide secretarial and administrative support to the joint committee.

Draft agendas are to be prepared by Climate Adaptation Te Tai Tokerau and approved by the Chair of the Committee prior to the Committee meeting.

**Remuneration**

Remuneration and / or reimbursement for costs incurred by council members is the responsibility of each council.

Respective iwi / hapū representatives will be remunerated and reimbursed by the nominating council in accordance with either the non-elected members remuneration policy of that council or alternatively the Northland Regional Council Non-Elected Members Allowances Policy.

**Joint Committee not discharged at triennial elections**

Pursuant to Clause 30(7) of Schedule 7 of the Local Government Act 2002, the councils have resolved that this joint committee is not discharged at the triennial elections. However, on coming into office following an election, a council may choose to review its appointments on the committee.

**Amendments**

Any amendment to the Terms of Reference or other arrangements of the Committee shall be subject to approval by all member councils.



**RESOLUTION TO EXCLUDE THE PUBLIC**

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

| <b>General subject of each matter to be considered</b> |                                                                             | <b>Reason for passing this resolution in relation to each matter</b> | <b>Ground(s) under Section 48(1) for passing this resolution</b> |
|--------------------------------------------------------|-----------------------------------------------------------------------------|----------------------------------------------------------------------|------------------------------------------------------------------|
| 1.1                                                    | Confidential Minutes Emergency Whangarei District Council 26 September 2024 |                                                                      |                                                                  |
| 1.2                                                    | ICT – Contracts Update                                                      |                                                                      |                                                                  |
| 1.3                                                    | Update on the Insurance Policy Renewal for 2024-2025                        |                                                                      |                                                                  |
| 1.4                                                    | Land Purchase Springs Flat Project                                          |                                                                      |                                                                  |
| 1.5                                                    | Potential Opportunities for High-Level Major Sporting Events in Northland   |                                                                      |                                                                  |

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

| <b>Item</b> | <b>Grounds</b>                                                                                                                  | <b>Section</b>     |
|-------------|---------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 1.1         | For the reasons as stated in the open minutes                                                                                   |                    |
| 1.2         | To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) | Section 7(2)(i)    |
| 1.3         | To protect information that would disclose a trade secret                                                                       | Section 7(2)(b)(i) |
| 1.4         | To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) | Section 7(2)(i)    |
| 1.5         | To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) | Section 7(2)(i)    |

**Resolution to allow members of the public to remain**

If the council/committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

**Move/Second**

“That \_\_\_\_\_ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item \_\_\_\_\_.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because \_\_\_\_\_.

*Note: Every resolution to exclude the public shall be put at a time when the meeting is open to the public.*